

FORUM IAS



UPSC PRELIMS

Level - 2

Polity

TEST – 04

WITH SOLUTION

2022

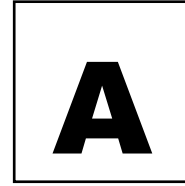
SFG 2022 | LEVEL 2 | Test 4 |

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T.B.C.: FIAS-SFG22-L2T4

Test Booklet Series

Serial No.

TEST BOOKLET
GENERAL STUDIES

Time Allowed: ONE HOUR

Maximum Marks: 100

I N S T R U C T I O N S

1. IMMEDIATELY AFTER THE COMMENCEMENT OF THE EXAMINATION, YOU SHOULD CHECK THAT THIS TEST BOOKLET DOES NOT HAVE ANY UNPRINTED OR TORN OR MISSING PAGES OR ITEMS ETC. IF SO, GET IT REPLACED BY A COMPLETE TEST BOOK.
2. Please note that it is the candidate's responsibility to encode and fill in the Roll Number and Test Booklet Series A, B, C or D carefully without any omission or discrepancy at the appropriate places in the OMR Answer Sheet. Any omission/discrepancy will render the Answer Sheet liable for rejection.
3. You have to enter your Name, Email Id and Mobile No. on the test booklet in the Box provided alongside. *DO NOT* write anything else on the Test Booklet.
4. This Test Booklet contains **50** items (questions). Each item is printed in **English** and **Hindi**. Each item comprises four responses (answers). You will select the response which you want to mark on the Answer Sheet. In case you feel that there is more than one correct response, mark the response which you consider the best. In any case, choose *ONLY ONE* response for each item.
5. You have to mark all your responses *ONLY* on the separate Answer Sheet provided. See directions in the Answer Sheet.
6. **All** items carry equal marks.
7. Before you proceed to mark in the Answer Sheet the response to various items in the Test Booklet, you have to fill in some particulars in the Answer Sheet as per instructions sent to you with your Admission Certificate.
8. After you have completed filling in all your responses on the Answer Sheet and the examination has concluded, you should hand over to the Invigilator *only* the Answer Sheet. You are permitted to take away with you the Test Booklet.
9. Sheets for rough work are appended in the Test Booklet at the end.
10. **Penalty for wrong answers:**

Name:

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THERE WILL BE PENALTY FOR WRONG ANSWERS MARKED BY A CANDIDATE IN THE OBJECTIVE TYPE QUESTION PAPERS.

- (i) There are four alternatives for the answer to every question. For each question for which a wrong answer has been given by the candidate, **one-third** of the marks assigned to that question will be deducted as penalty.
- (ii) If a candidate gives more than one answer, it will be treated as **wrong answer** even if one of the given answers happens to be correct and there will be same penalty as above to that question.
- (iii) If a question is left blank i.e., no answer is given by the candidate, there will be **no penalty** for that question.

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Q.1) Which of the following Articles confer the power of judicial review on the Supreme Court and the High Courts?

1. Article 12
2. Article 13
3. Article 32
4. Article 226

Select the correct answer using the code given below:

- a) 1, 2 and 3 only
- b) 2, 3 and 4 only
- c) 3 and 4 only
- d) 1, 2, 3 and 4

Q.2) Consider the following statements regarding Public interest litigation (PIL)

1. Unlike Judicial activism, Public interest litigation (PIL) is mentioned in constitution.
2. Public Interest Litigation cannot be filed before the High Courts.
3. A Public Interest Litigation cannot be filed against the Central government.

Which of the statements given above **is/are incorrect**?

- a) 1 and 2 only
- b) 2 only
- c) 3 only
- d) 1, 2 and 3

Q.3) "It is a theory of judicial interpretation that encourages judges to limit the exercise of their own power. According to this theory, there is no scope of interpretation of the Constitution, and changes can be made through amendments only. The judge must stick to the laws enacted by the legislature and should uphold them unless they are unconstitutional."

The above paragraph refers to which of the following theory?

- a) Judicial Activism
- b) Judicial Overreach
- c) Judicial Restraint
- d) Judicial Review

Q.4) In which of the following cases, the High court has original jurisdiction?

1. Civil cases in which subordinate courts are not authorized to try cases
2. A dispute between two states
3. Criminal cases in which subordinate courts are not authorized to try cases
4. Disputes related to the election of members of Parliament
5. Matters related to Finance Commission

Select the correct answer using the code given below:

- a) 1, 3 and 4 only
- b) 4 only
- c) 1, 4 and 5 only

d) 1 and 5 only

Q.5) With reference to Foreign Contribution Regulation Act, consider the following statements:

1. The act is applicable to all the associations, groups, and NGOs which intend to receive foreign donations.
2. It is mandatory for NGOs to open an exclusive Bank account with the RBI to receive foreign donations.
3. The donations received in Indian rupees by NGOs from any foreign source is treated as foreign contribution.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) 1 and 3 only
- d) 1, 2 and 3

Q.6) Consider the following statements regarding Supreme Court of India.

1. Seat of the Supreme Court can be set up anywhere in India.
2. No constitutional amendment is required for the purpose of setting up of cassation benches of Supreme Court in various regions of India.
3. At least five judges need to hear cases that involve a substantial question of law as to the interpretation of the Constitution.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 only
- c) 3 only
- d) 1, 2 and 3

Q.7) Which of the following guidelines should be followed in admitting public interest litigation (PIL)?

1. Any third party can challenge a sentence awarded to the convicts through a PIL.
2. PILs may be filed under Article 32 and Article 226 of the Indian Constitution.
3. Letter-petitions on non-payment of minimum wages to workers can be entertained as PIL.

Select the correct answer using the code given below:

- a) 1 and 2 only
- b) 2 only
- c) 2 and 3 only
- d) 1, 2 and 3

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Q.1) निम्नलिखित में से कौन सा अनुच्छेद सर्वोच्च न्यायालय और उच्च न्यायालयों को न्यायिक समीक्षा की शक्ति प्रदान करता है?

1. अनुच्छेद 12
2. अनुच्छेद 13
3. अनुच्छेद 32
4. अनुच्छेद 226

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1, 2 और 3
- b) केवल 2, 3 और 4
- c) केवल 3 और 4
- d) 1, 2, 3 और 4

Q.2) जनहित याचिका (PIL) के संबंध में निम्नलिखित कथनों पर विचार करें

1. न्यायिक सक्रियता के विपरीत, संविधान में जनहित याचिका (PIL) का उल्लेख किया गया है।
2. उच्च न्यायालयों के समक्ष जनहित याचिका दायर नहीं की जा सकती।
3. केंद्र सरकार के खिलाफ जनहित याचिका दायर नहीं की जा सकती।

ऊपर दिए गए कथनों में से कौन-सा/से गलत है/हैं?

- a) केवल 1 और 2
- b) केवल 2
- c) केवल 3
- d) 1, 2 और 3

Q.3) "यह न्यायिक व्याख्या का एक सिद्धांत है जो न्यायाधीशों को अपनी शक्ति के प्रयोग को सीमित करने के लिए प्रोत्साहित करता है। इस सिद्धांत के अनुसार, संविधान की व्याख्या की कोई गुंजाइश नहीं है, और परिवर्तन केवल संशोधनों के माध्यम से किया जा सकता है। न्यायाधीश को विधायिका द्वारा बनाए गए कानूनों का पालन करना चाहिए और जब तक वे असंवैधानिक न हों, उन्हें बनाए रखना चाहिए।"

उपरोक्त पैराग्राफ निम्नलिखित में से किस सिद्धांत को संदर्भित करता है?

- a) न्यायिक सक्रियता
- b) न्यायिक अतिक्रमण
- c) न्यायिक संयम
- d) न्यायिक समीक्षा

Q.4) निम्नलिखित में से किस मामले में उच्च न्यायालय का मूल अधिकार क्षेत्र है?

1. दीवानी मामले जिनमें अधीनस्थ न्यायालय मामलों की सुनवाई के लिए अधिकृत नहीं हैं
2. दो राज्यों के बीच विवाद
3. आपराधिक मामले जिनमें अधीनस्थ न्यायालय मामलों की सुनवाई के लिए अधिकृत नहीं हैं
4. संसद सदस्यों के चुनाव से संबंधित विवाद
5. वित्त आयोग से संबंधित मामले

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1, 3 और 4
- b) केवल 4
- c) केवल 1, 4 और 5

d) केवल 1 और 5

Q.5) विदेशी अंशदान विनियमन अधिनियम (FCRA) के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. यह अधिनियम उन सभी संघों, समूहों और गैर सरकारी संगठनों पर लागू होता है जो विदेशी चंदा प्राप्त करना चाहते हैं।
2. गैर सरकारी संगठनों के लिए विदेशी दान प्राप्त करने हेतु आरबीआई के साथ एक विशेष बैंक खाता खोलना अनिवार्य है।
3. किसी विदेशी स्रोत से गैर सरकारी संगठनों द्वारा भारतीय रुपये में प्राप्त दान को विदेशी योगदान के रूप में माना जाता है।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1
- b) केवल 2
- c) केवल 1 और 3
- d) 1, 2 और 3

Q.6) भारत के सर्वोच्च न्यायालय के संबंध में निम्नलिखित कथनों पर विचार करें।

1. सुप्रीम कोर्ट को भारत में कहीं भी स्थापित किया जा सकता है।
2. भारत के विभिन्न क्षेत्रों में सर्वोच्च न्यायालय की अपीलीय पीठों (cassation benches) की स्थापना के उद्देश्य से किसी संवैधानिक संशोधन की आवश्यकता नहीं है।
3. कम से कम पांच न्यायाधीशों को ऐसे मामलों की सुनवाई करने की आवश्यकता है जिनमें संविधान की व्याख्या के संबंध में कानून का कोई महत्वपूर्ण प्रश्न शामिल है।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1 और 2
- b) केवल 2
- c) केवल 3
- d) 1, 2 और 3

Q.7) जनहित याचिका (PIL) को स्वीकार करने में निम्नलिखित में से किस दिशा-निर्देश का पालन किया जाना चाहिए?

1. कोई भी तीसरा पक्ष जनहित याचिका के माध्यम से दोषियों को दी गई सजा को चुनौती दे सकता है।
2. भारतीय संविधान के अनुच्छेद 32 और अनुच्छेद 226 के तहत जनहित याचिका दायर की जा सकती है।
3. श्रमिकों को न्यूनतम मजदूरी का भुगतान न करने पर पत्र-याचिका पर जनहित याचिका के रूप में विचार किया जा सकता है।

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1 और 2
- b) केवल 2
- c) केवल 2 और 3
- d) 1, 2 और 3

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Q.8) Which of the following statements is/are correct regarding Judicial Activism?

1. The requirement of substantive due process into Article 21 was introduced by judicial activism.
2. Judicial Activism is the exercise of judicial power without any backing of the law.
3. Judicial Activism is a philosophy whereby judges allow their personal views about public policy.

Select the correct answer using the code given below:

- a) 1 and 2 only
- b) 2 only
- c) 1 and 3 only
- d) 3 only

Q.9) Consider the following statements regarding High courts:

1. The investigation committee of the Parliament for the removal of a judge of high court should consist a distinguished jurist as a member.
2. The only ground for the removal of judge of High court is the violation of the Constitution.
3. The strength of a high court is determined by the Parliament.

Which of the statements given above is/are correct?

- a) 1 only
- b) 1 and 2 only
- c) 2 and 3 only
- d) 3 only

Q.10) Which of the following are responsible for formation of the highly reactive gases known as oxides of nitrogen or nitrogen oxides?

1. Burning of Coal
2. Microbial processes in soil
3. Lightning strike
4. Coral Reef Formation
5. Manufacturing of fertilizers.

Select the correct answer using the codes given below:

- a) 1, 2 and 3 only
- b) 1, 2 and 5 only
- c) 1, 2, 3 and 5 only
- d) 1, 2, 3, 4 and 5

Q.11) With reference to the Supreme Court of India, consider the following statements:

1. The present Supreme Court of India was constituted by the Government of India Act, 1935.
2. The original Constitution fixed the strength of the Supreme Court at 8 including Chief Justice of India.
3. The strength of the Supreme Court has been increased to 40 by the Supreme Court (Number of Judges) Amendment Act, 2019.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 only
- c) 1 and 3 only
- d) 3 only

Q.12) Consider the following statements:

1. The National Judicial Appointments Commission (NJAC) Act was declared unconstitutional by the Supreme Court as it violated the basic structure of the Constitution.
2. The Supreme Court upheld the primacy of the collegium system following the NJAC judgement.
3. The collegium was expanded to a five-member body of the Supreme Court in the Third Judges case.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 and 3 only
- c) 3 only
- d) 1, 2 and 3

Q.13) Consider the following statements with respect to the appointment of Chief Justice of India:

1. The senior most judge of the Supreme Court should alone be appointed as Chief Justice of India as per a recent amendment of the Constitution.
2. No judge is appointed so far as the chief justice of India by superseding the then senior-most judge.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

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Q.8) न्यायिक सक्रियता के संबंध में निम्नलिखित में से कौन सा/से कथन सही है/हैं?

1. अनुच्छेद 21 में मौलिक नियत प्रक्रिया की आवश्यकता न्यायिक सक्रियता द्वारा पेश की गई थी।
2. न्यायिक सक्रियता कानून के समर्थन के बिना न्यायिक शक्ति का प्रयोग है।
3. न्यायिक सक्रियता एक दर्शन है जिसके द्वारा न्यायाधीश सार्वजनिक नीति के बारे में अपने व्यक्तिगत विचार रख सकते हैं।

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1 और 2
- b) केवल 2
- c) केवल 1 और 3
- d) केवल 3

Q.9) उच्च न्यायालयों के संबंध में निम्नलिखित कथनों पर विचार करें:

1. उच्च न्यायालय के किसी न्यायाधीश को हटाने के लिए संसद की जांच समिति में एक सदस्य के रूप में एक प्रतिष्ठित विधिवेत्ता होना चाहिए।
2. उच्च न्यायालय के न्यायाधीश को हटाने का एकमात्र आधार संविधान का उल्लंघन है।
3. उच्च न्यायालय की शक्ति संसद द्वारा निर्धारित की जाती है।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1
- b) केवल 1 और 2
- c) केवल 2 और 3
- d) केवल 3

Q.10) नाइट्रोजन के ऑक्साइड या नाइट्रोजन ऑक्साइड के रूप में जानी जाने वाली अत्यधिक प्रतिक्रियाशील गैसों के निर्माण के लिए निम्नलिखित में से कौन जिम्मेदार हैं?

1. कोयले का जलना
2. मिट्टी में माइक्रोबियल प्रक्रियाएं
3. बिजली की हड़ताल
4. कोरल रीफ फॉर्मेशन
5. उर्वरकों का निर्माण।

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1, 2 और 3
- b) केवल 1, 2 और 5
- c) केवल 1, 2, 3 और 5
- d) 1, 2, 3, 4 और 5

Q.11) भारत के सर्वोच्च न्यायालय के संदर्भ में, निम्नलिखित कथनों पर विचार कीजिए:

1. भारत के वर्तमान सर्वोच्च न्यायालय का गठन भारत सरकार अधिनियम, 1935 द्वारा किया गया था।
2. मूल संविधान ने भारत के मुख्य न्यायाधीश सहित सर्वोच्च न्यायालय की संख्या 8 निर्धारित की।
3. सर्वोच्च न्यायालय (न्यायाधीशों की संख्या) संशोधन अधिनियम, 2019 द्वारा सर्वोच्च न्यायालय की शक्ति को बढ़ाकर 40 कर दिया गया है।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1 और 2
- b) केवल 2
- c) केवल 1 और 3
- d) केवल 3

Q.12) निम्नलिखित कथनों पर विचार करें:

1. राष्ट्रीय न्यायिक नियुक्ति आयोग (एनजेएसी) अधिनियम को सर्वोच्च न्यायालय द्वारा असंवैधानिक घोषित किया गया क्योंकि यह संविधान के मूल ढांचे का उल्लंघन करता था।
2. सुप्रीम कोर्ट ने एनजेएसी के फैसले के बाद कॉलेजियम प्रणाली की प्रधानता को बरकरार रखा।
3. तीसरे न्यायाधीशों के मामले में उच्चतम न्यायालय के पांच सदस्यीय निकाय के रूप में कॉलेजियम का विस्तार किया गया था।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1
- b) केवल 2 और 3
- c) केवल 3
- d) 1, 2 और 3

Q.13) भारत के मुख्य न्यायाधीश की नियुक्ति के संबंध में निम्नलिखित कथनों पर विचार करें:

1. संविधान के हालिया संशोधन के अनुसार सर्वोच्च न्यायालय के वरिष्ठतम न्यायाधीश को ही भारत के मुख्य न्यायाधीश के रूप में नियुक्त किया जाना चाहिए।
2. तत्कालीन वरिष्ठतम न्यायाधीश को हटाकर अब तक किसी भी न्यायाधीश को भारत के मुख्य न्यायाधीश के रूप में नियुक्त नहीं किया गया है।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

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Q.14) With reference to the comparison between the judge of the Supreme Court and the High Court, consider the following statements:

1. While judge appointed to the Supreme Court should be a citizen of India, no such condition is required for appointment of judge to High Court.
2. No 'distinguished jurist' has been appointed as a judge of Supreme Court so far.
3. The salaries of judges of both Supreme Court and High Courts are charged on the Consolidated Fund of India.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 and 3 only
- c) 2 only
- d) 1, 2 and 3

Q.15) Consider the following statements regarding 'Olive Ridley Turtles':

1. They are the smallest and most abundant of all sea turtles found in the world.
2. They are marine herbivores consuming only plant life such as macroalgae and seagrasses.
3. They are best known for their unique mass nesting called Arribada.
4. Operation Olivia started in 1980s by Indian Coast Guard aimed at protection of Olive Ridley Turtles.

Which of the above statements are correct?

- a) 1 and 3 only
- b) 1, 2 and 3 only
- c) 3 and 4 only
- d) 1, 3 and 4 only

Q.16) Consider the following statements:

1. Parliament can appoint a judge of the Supreme Court as an acting Chief Justice of India when the office of Chief Justice of India is vacant.
2. The President can appoint a retired Chief Justice of India as a current Chief Justice of India at any time.
3. The State Government should obtain the sanction of the Central Government for the creation of posts of Additional Judges in high courts.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 only
- c) 1 and 3 only
- d) 3 only

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Q.17) With reference to criminal appellate jurisdiction of the Supreme Court, consider the following statements:

1. The criminal appellate jurisdiction of the Supreme Court has been reduced since independence.
2. An appeal lies to the Supreme Court as a matter of right if the high court has reversed the acquittal of an accused person and sentenced him to death.
3. There is no provision for Special Leave Petition in criminal cases.

Which of the statements given above is/are correct?

- a) 1 only
- b) 1 and 3 only
- c) 2 only
- d) 1, 2 and 3

Q.18) In which of the following cases has the President made reference to the Supreme Court under Article 143 of the Constitution?

1. Berubari Union case
2. Validity of Speaker's decision with regard to disqualification under Tenth Schedule
3. Punjab Termination of Agreements Act in 2004
4. Consultation process to be adopted by the Chief Justice of India for the appointment of judges to the Supreme Court
5. 2G spectrum case verdict

Select the correct answer using the code given below:

- a) 2, 3 and 4 only
- b) 1, 3, 4 and 5 only
- c) 1, 2 and 5 only
- d) 1, 2, 3, 4 and 5

Q.19) Consider the following statements with respect to the Pre-Constitution agreements and treaty:

1. It means such an agreement which was executed before the commencement of the Constitution and which continues to be in operation after commencement.
2. The original jurisdiction of the Supreme Court does not extend to any dispute arising out of any pre-constitution treaty and agreement.
3. The President cannot seek the opinion of the Supreme Court on any pre-constitution legal matters.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

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Q.14) उच्चतम न्यायालय और उच्च न्यायालय के न्यायाधीश के बीच तुलना के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. जबकि सर्वोच्च न्यायालय में नियुक्त न्यायाधीश भारत का नागरिक होना चाहिए, उच्च न्यायालय में न्यायाधीश की नियुक्ति के लिए ऐसी किसी शर्त की आवश्यकता नहीं है।
2. सर्वोच्च न्यायालय के न्यायाधीश के रूप में अभी तक किसी भी 'प्रतिष्ठित विधिवेत्ता' को नियुक्त नहीं किया गया है।
3. सर्वोच्च न्यायालय और उच्च न्यायालयों दोनों के न्यायाधीशों का वेतन भारत की संचित निधि पर भारित होता है।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1
- b) केवल 2 और 3
- c) केवल 2
- d) केवल 1, 2 और 3

Q.15) 'ऑलिव रिडले कछुओं' के संबंध में निम्नलिखित कथनों पर विचार करें:

1. वे दुनिया में पाए जाने वाले सभी समुद्री कछुओं में सबसे छोटे और सबसे प्रचुर मात्रा में हैं।
2. वे समुद्री शाकाहारी हैं जो केवल सूक्ष्म एल्गी और समुद्री घास जैसे पौधों का उपभोग करते हैं।
3. वे अपने अद्वितीय घोंसले के लिए जाने जाते हैं जिन्हें अरिबाडा कहा जाता है।
4. ओलिव रिडले कछुओं की सुरक्षा के उद्देश्य से भारतीय तटरक्षक बल द्वारा 1980 के दशक में ऑपरेशन ओलिविया शुरू किया गया था।

उपरोक्त में से कौन से कथन सही हैं?

- a) केवल 1 और 3
- b) केवल 1, 2 और 3
- c) केवल 3 और 4
- d) केवल 1, 3 और 4

Q.16) निम्नलिखित कथनों पर विचार करें:

1. भारत के मुख्य न्यायाधीश का पद रिक्त होने पर संसद सर्वोच्च न्यायालय के किसी न्यायाधीश को भारत का कार्यवाहक मुख्य न्यायाधीश नियुक्त कर सकती है।
2. राष्ट्रपति भारत के किसी सेवानिवृत्त मुख्य न्यायाधीश को किसी भी समय भारत के वर्तमान मुख्य न्यायाधीश के रूप में नियुक्त कर सकते हैं।
3. उच्च न्यायालयों में अतिरिक्त न्यायाधीशों के पदों के सृजन के लिए राज्य सरकार को केंद्र सरकार की मंजूरी लेनी चाहिए।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1 और 2
- b) केवल 2
- c) केवल 1 और 3
- d) केवल 3

Q.17) सर्वोच्च न्यायालय के आपराधिक अपीलीय क्षेत्राधिकार के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. स्वतंत्रता के बाद से सर्वोच्च न्यायालय के आपराधिक अपीलीय क्षेत्राधिकार को कम कर दिया गया है।
2. यदि उच्च न्यायालय ने किसी आरोपी व्यक्ति के बरी करने को उलट दिया है और उसे मौत की सजा सुनाई है, तो उसके अधिकार के मामले में सर्वोच्च न्यायालय में अपील की जा सकती है।
3. आपराधिक मामलों में विशेष अनुमति याचिका(SLP) का प्रावधान नहीं है।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1
- b) केवल 1 और 3
- c) केवल 2
- d) 1, 2 और 3

Q.18) निम्नलिखित में से किस मामले में राष्ट्रपति ने संविधान के अनुच्छेद 143 के तहत सर्वोच्च न्यायालय का संदर्भ दिया है?

1. बेरुबारी संघ का मामला
2. दसवीं अनुसूची के तहत अयोग्यता के संबंध में अध्यक्ष के निर्णय की वैधता
3. 2004 में पंजाब टर्मिनेशन ऑफ एग्रीमेंट एक्ट
4. उच्चतम न्यायालय में न्यायाधीशों की नियुक्ति के लिए भारत के मुख्य न्यायाधीश द्वारा अपनाई जाने वाली परामर्श प्रक्रिया
5. 2जी स्पेक्ट्रम मामले में फैसला

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 2, 3 और 4
- b) केवल 1, 3, 4 और 5
- c) केवल 1, 2 और 5
- d) 1, 2, 3, 4 और 5

Q.19) पूर्व-संविधान समझौतों और संधि के संबंध में निम्नलिखित कथनों पर विचार करें:

1. इसका अर्थ है ऐसा समझौता जो संविधान के लागू होने से पहले किया गया था और जो लागू होने के बाद भी जारी है।
2. सर्वोच्च न्यायालय का मूल क्षेत्राधिकार किसी संविधान-पूर्व संधि और समझौते से उत्पन्न होने वाले किसी भी विवाद पर लागू नहीं होता है।
3. राष्ट्रपति किसी भी पूर्व-संविधान कानूनी मामलों पर सर्वोच्च न्यायालय की राय नहीं ले सकते।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1 और 2
- b) केवल 2 और 3
- c) केवल 1 और 3
- d) 1, 2 और 3

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Q.20) With reference to 'Faunal Diversity of India', which one of the following statements correctly differentiate Indian Pangolin from Chinese Pangolin?

- The Indian Pangolin do not have scales on its skin, while Chinese Pangolin have scales.
- The Chinese Pangolin rests in deep burrows while Indian Pangolin rests on the branches of trees.
- The Chinese Pangolin has smaller scales as compared to the Indian pangolin.
- The Indian Pangolin has dark shade on its skin, while Chinese Pangolin has light shade on its scaly skin.

Q.21) Consider the following statements:

- The Supreme Court has said that the government is entitled to commit errors and achieve successes in policy matters.
- Judicial Review is an Indian innovation propounded first in the Keshavananda Bharti case.

Which of the statements given above is/are correct?

- 1 only
- 2 only
- Both 1 and 2
- Neither 1 nor 2

Q.22) With reference to High Court of India, consider the following statements:

- The institution of high court originated in India in 1862.
- It is mandatory for every state in India to have high court with a constitutional status.
- The territorial jurisdiction of a high court is co-terminus with the territory of a state.
- The jurisdiction and powers of a high court cannot be curtailed in any case by the Parliament of India or the state legislature.

Which of the statements given above is/are correct?

- 1, 2 and 3 only
- 1 and 3 only
- 2, 3 and 4 only
- 1, 3 and 4 only

Q.23) Which of the following statements is correct regarding the High Courts in India?

- The Seventh Amendment Act of 1956 authorises the Parliament to establish a common high court for two or more states.
- There are currently seven High Courts in India having jurisdiction over more than one State/Union Territory.

Select the correct answer using the code given below:

- 1 only
- 2 only
- Both 1 and 2
- Neither 1 nor 2

Q.24) Consider the following statements:

- According to the Constitution the number of judges in each High Court is determined only after consultation with the Governor of the concerned state.
- It is binding for President to consult the Chief Justice of the Supreme Court for appointments of the judges of the High Court.

Which of the statements given above is/are **incorrect**?

- 1 only
- 2 only
- Both 1 and 2
- Neither 1 nor 2

Q.25) Recently in India, agricultural productivity is negatively impacted due to increasing insect attack. In this context, how 'whiteflies' are damaging crops in India?

- They eat the seeds and thin stem of the crop plant.
- They excrete sticky honeydew and cause the yellowing or death of leaves.
- They inject saliva that may harm the plant with the growth of the fungi.

Select the correct answer using the codes given below:

- 1 and 2 only
- 2 and 3 only
- 1 and 3 only
- 1, 2 and 3

Q.26) With reference to the appointment of subordinate employees in High Courts, consider the following statements:

- The Chief Justice of the High Court holds the power to appoint a person as an officer or servant in the High Court.
- The conditions of service of officers and servants of a High Court are prescribed by rules made by the Chief Justice of the High Court.

Which of the statements given above is/are correct?

- 1 only
- 2 only
- Both 1 and 2
- Neither 1 nor 2

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Q.20) 'भारत की जीव विविधता' के संदर्भ में, निम्नलिखित में से कौन सा कथन भारतीय पैंगोलिन को चीनी पैंगोलिन से सही ढंग से अलग करता है?

- भारतीय पैंगोलिन की त्वचा पर स्केल्स नहीं होते, जबकि चीनी पैंगोलिन की स्केल्स होते हैं।
- चीनी पैंगोलिन गहरी गड्ढों में रहता है जबकि भारतीय पैंगोलिन पेड़ों की शाखाओं पर टिका होता है।
- भारतीय पैंगोलिन की तुलना में चीनी पैंगोलिन के छोटे स्केल्स होते हैं।
- भारतीय पैंगोलिन की त्वचा पर गहरे रंग की छाया होती है, जबकि चीनी पैंगोलिन की पपड़ीदार त्वचा पर हल्की छाया होती है।

Q.21) निम्नलिखित कथनों पर विचार करें:

- सुप्रीम कोर्ट ने कहा है कि सरकार को गलतियां करने और नीतिगत मामलों में सफलता हासिल करने का अधिकार है।
- न्यायिक समीक्षा केशवानंद भारती मामले में पहली बार प्रतिपादित एक भारतीय नवाचार है।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- केवल 1
- केवल 2
- 1 और 2 दोनों
- न तो 1 और न ही 2

Q.22) भारत के उच्च न्यायालय के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

- भारत में उच्च न्यायालय की स्थापना 1862 में हुई थी।
- भारत में प्रत्येक राज्य के लिए संवैधानिक स्थिति के साथ एक उच्च न्यायालय होना अनिवार्य है।
- एक उच्च न्यायालय का क्षेत्रीय क्षेत्राधिकार एक राज्य के क्षेत्र के साथ सह-टर्मिनस है।
- किसी भी मामले में भारत की संसद या राज्य विधायिका द्वारा उच्च न्यायालय के अधिकार क्षेत्र और शक्तियों को कम नहीं किया जा सकता है।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- केवल 1, 2 और 3
- केवल 1 और 3
- केवल 2, 3 और 4
- केवल 1, 3 और 4

Q.23) भारत में उच्च न्यायालयों के संबंध में निम्नलिखित में से कौन सा कथन सही है?

- 1956 का सातवां संशोधन अधिनियम संसद को दो या दो से अधिक राज्यों के लिए एक सामान्य उच्च न्यायालय स्थापित करने के लिए अधिकृत करता है।
- वर्तमान में भारत में सात उच्च न्यायालय हैं जिनका एक से अधिक राज्यों/संघ राज्य क्षेत्रों पर अधिकार क्षेत्र है।

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- केवल 1

- केवल 2
- 1 और 2 दोनों
- न तो 1 और न ही 2

Q.24) निम्नलिखित कथनों पर विचार करें:

- संविधान के अनुसार प्रत्येक उच्च न्यायालय में न्यायाधीशों की संख्या संबंधित राज्य के राज्यपाल से परामर्श के बाद ही निर्धारित की जाती है।
- उच्च न्यायालय के न्यायाधीशों की नियुक्ति के लिए राष्ट्रपति के लिए सर्वोच्च न्यायालय के मुख्य न्यायाधीश से परामर्श करना बाध्यकारी है।

ऊपर दिए गए कथनों में से कौन-सा/से गलत है/हैं?

- केवल 1
- केवल 2
- 1 और 2 दोनों
- न तो 1 और न ही 2

Q.25) हाल ही में भारत में, बढ़ते कीटों के हमले के कारण कृषि उत्पादकता पर नकारात्मक प्रभाव पड़ा है। इस संदर्भ में, भारत में 'सफेद मक्खियाँ' किस प्रकार फसलों को नुकसान पहुँचा रही हैं?

- ये फसल के पौधे के बीज और पतले तने को खाते हैं।
- वे चिपचिपे शहद का उत्सर्जन करते हैं और पत्तियों के पीलेपन या नष्ट होने का कारण बनती हैं।
- वे लार को इंजेक्ट करते हैं जो कवक के विकास के साथ पौधे को नुकसान पहुँचा सकती है।

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- केवल 1 और 2
- केवल 2 और 3
- केवल 1 और 3
- 1, 2 और 3

Q.26) उच्च न्यायालयों में अधीनस्थ कर्मचारियों की नियुक्ति के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

- उच्च न्यायालय के मुख्य न्यायाधीश के पास उच्च न्यायालय में किसी व्यक्ति को अधिकारी या सेवक के रूप में नियुक्त करने की शक्ति होती है।
- उच्च न्यायालय के अधिकारियों और सेवकों की सेवा की शर्तें उच्च न्यायालय के मुख्य न्यायाधीश द्वारा बनाए गए नियमों द्वारा निर्धारित की जाती हैं।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- केवल 1
- केवल 2
- 1 और 2 दोनों
- न तो 1 और न ही 2

**SFG 2022 | LEVEL 2 | Test 4 | **

Q.27) Which of the following Acts & Procedures govern the present Jurisdiction and powers of High Court?

1. The Letters Patent
2. Rules of Procedure of Lok Sabha
3. Acts of Parliament
4. Indian Penal Code, 1860

Select the correct answer using the code given below

- a) 1, 2 and 3 only
- b) 4 only
- c) 1, 3 and 4 only
- d) 1, 2, 3 and 4

Q.28) With reference to jurisdictions of Central Administrative Tribunals (CAT), Consider the following statements:

1. The CAT exercises original jurisdiction in relation to recruitment and service matters of public servants.
2. While it covers Central civil services and civilian employees of defence services, it excludes all-India services.
3. The CAT is guided by the principle of natural justice and not bound by procedures laid down in Civil Procedure Code of 1908.

Which of the above-mentioned statements is/are correct?

- a) 1 and 3 only
- b) 2 and 3 only
- c) 3 only
- d) 1, 2 and 3 only

Q.29) With reference to Supreme Court in India and United States, which of the following statements is/are correct?

1. While the SC judges retire at 65 years of age in India, they can hold their seat until they resign in USA.
2. The ambit of Judicial review in India is wider than that of federal court of USA.

Choose the correct answer using the options given below:

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.30) Consider the following statements regarding 'Elephant Seals':

1. They are found only in the Southern Hemisphere of the Earth specifically in Antarctica.
2. They feed on small fish instead of larger preys in a deep-sea region.
3. Female seals are relatively smaller than the male seals.

Which of the statements given above is/are correct?

- a) 1 and 2 only

- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Q.31) With reference to tribunals, consider the following statements:

1. The original constitution did not provide for establishment of Tribunals.
2. Each High Court holds a separate bench of Central Administrative Tribunal.
3. The present sanctioned strength of CAT is 65 members and one Chairman.

Which of the above-mentioned statements is/are correct?

- a) 1 and 2 only
- b) 1 and 3 only
- c) 2 and 3 only
- d) None of the above

Q.32) With reference to Tribunals Reforms Act 2021, which of the following statements is /are correct?

1. It has created a separate tribunal for Goods and Service Tax called The Goods and Service Tax Appellate Tribunal.
2. The Act empowers the Supreme Court to provide for the qualifications, tenure and other service conditions of the members of tribunals.
3. The Act has merged several tribunals based on their domains.

Choose the correct answer using the options given below:

- a) 1 and 2 only
- b) 1 and 3 only
- c) 2 and 3 only
- d) None of the above

Q.33) With reference to State Administrative Tribunals (SAT), consider the following statements:

1. The Central Government is empowered to establish the SAT on specific request of concerned state government.
2. All the states, except West Bengal and Kerala, have functioning State Administrative Tribunals.
3. The chairman and members of SAT are appointed by the Governor in consultation with respective Chief Justice of High Court.

Which of the above-mentioned statements is/are correct?

- a) 1 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

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Q.27) निम्नलिखित में से कौन सा अधिनियम और प्रक्रिया उच्च न्यायालय के वर्तमान क्षेत्राधिकार और शक्तियों को नियंत्रित करती है?

1. द लेटर्स पेटेंट
2. लोकसभा की प्रक्रिया के नियम
3. संसद के अधिनियम
4. भारतीय दंड संहिता, 1860

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए

- a) केवल 1, 2 और 3
- b) केवल 4
- c) केवल 1, 3 और 4
- d) 1, 2, 3 और 4

Q.28) केंद्रीय प्रशासनिक न्यायाधिकरण (CAT) के क्षेत्राधिकार के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. CAT लोक सेवकों की भर्ती और सेवा मामलों के संबंध में मूल अधिकार क्षेत्र का प्रयोग करता है।
2. हालांकि इसमें केंद्रीय सिविल सेवाओं और रक्षा सेवाओं के असैनिक कर्मचारियों को शामिल किया गया है, लेकिन इसमें अखिल भारतीय सेवाओं को शामिल नहीं किया गया है।
3. CAT नैसर्गिक न्याय के सिद्धांत द्वारा निर्देशित है और सिविल प्रक्रिया संहिता 1908 में निर्धारित प्रक्रियाओं से बाध्य नहीं है।

उपर्युक्त में से कौन सा/से कथन सही है/हैं?

- a) केवल 1 और 3
- b) केवल 2 और 3
- c) केवल 3
- d) केवल 1, 2 और 3

Q.29) भारत और संयुक्त राज्य अमेरिका में सर्वोच्च न्यायालय के संदर्भ में, निम्नलिखित में से कौन सा/से कथन सही है/हैं?

1. जबकि भारत में सर्वोच्च न्यायालय के न्यायाधीश 65 वर्ष की आयु में सेवानिवृत्त होते हैं, वहीं वे संयुक्त राज्य अमेरिका में इस्तीफा देने तक अपनी सीट पर बने रह सकते हैं।
2. भारत में न्यायिक समीक्षा का दायरा संयुक्त राज्य अमेरिका के संघीय न्यायालय की तुलना में व्यापक है।

नीचे दिए गए विकल्पों का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

Q.30) 'एलीफेंट सील' के संबंध में निम्नलिखित कथनों पर विचार करें:

1. वे केवल पृथ्वी के दक्षिणी गोलार्ध में विशेष रूप से अंटार्कटिका में पाए जाते हैं।
2. वे गहरे समुद्र के क्षेत्र में बड़े शिकार के बजाय छोटी मछलियों को खाते हैं।

3. मादा सील नर सील की तुलना में अपेक्षाकृत छोटी होती हैं।

उपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1 और 2
- b) केवल 2 और 3
- c) केवल 1 और 3
- d) 1, 2 और 3

Q.31) ट्रिब्यूनल के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. मूल संविधान में न्यायाधिकरणों की स्थापना का प्रावधान नहीं था।
2. प्रत्येक उच्च न्यायालय में केंद्रीय प्रशासनिक न्यायाधिकरण की एक अलग पीठ होती है।
3. केंद्रीय प्रशासनिक न्यायाधिकरण की वर्तमान स्वीकृत संख्या 65 सदस्य और एक अध्यक्ष है।

उपर्युक्त में से कौन सा/से कथन सही है/हैं?

- a) केवल 1 और 2
- b) केवल 1 और 3
- c) केवल 2 और 3
- d) उपरोक्त में से कोई नहीं

Q.32) ट्रिब्यूनल रिफॉर्म एक्ट 2021 के संदर्भ में, निम्नलिखित में से कौन सा/से कथन सही है/हैं?

1. इसने माल एवं सेवा कर के लिए एक अलग न्यायाधिकरण बनाया है जिसे माल एवं सेवा कर के लिए अपीलीय ट्रिब्यूनल कहा जाता है।
2. अधिनियम सर्वोच्च न्यायालय को न्यायाधिकरणों के सदस्यों की योग्यता, कार्यकाल और अन्य सेवा शर्तों को प्रदान करने का अधिकार देता है।
3. अधिनियम ने कई न्यायाधिकरणों को उनके क्षेत्राधिकार के आधार पर विलय कर दिया है।

नीचे दिए गए विकल्पों का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1 और 2
- b) केवल 1 और 3
- c) केवल 2 और 3
- d) उपरोक्त में से कोई नहीं

Q.33) राज्य प्रशासनिक न्यायाधिकरण (SAT) के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. केंद्र सरकार को संबंधित राज्य सरकार के विशिष्ट अनुरोध पर SAT स्थापित करने का अधिकार है।
2. पश्चिम बंगाल और केरल को छोड़कर, सभी राज्यों में राज्य प्रशासनिक न्यायाधिकरण कार्यरत हैं।
3. उच्च न्यायालय के संबंधित मुख्य न्यायाधीश के परामर्श से राज्यपाल द्वारा SAT के अध्यक्ष और सदस्यों की नियुक्ति की जाती है।

उपर्युक्त में से कौन सा/से कथन सही है/हैं?

- a) केवल 1
- b) केवल 2 और 3
- c) केवल 1 और 3
- d) 1, 2 और 3

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Q.34) With reference to the difference between Article 323A and 323B, Consider the following statements:

1. Article 323A aims for the establishment of tribunals for public service matters only.
2. Tribunals under Article 323 B can be established only by Parliament.
3. Under Article 323 B, a hierarchy of tribunals can be created.

Which of the statements given above is/are correct?

- a) 3 only
- b) 1 and 3 only
- c) 2 only
- d) 1 and 2 only

Q.35) "This ecosystem was formed from the sediments that were deposited by the Indus and other rivers over thousands of years. The vegetation here is sparse and highly dependent on rainfall. It is dominated by low-growing forbs and graminoids, many of which are halophiles (salt-tolerant), as well as scattered tree cover and scrub. The tribal community of Maldhari resides in this ecosystem."

Which of one of the following ecosystems in India is mentioned in the above paragraph?

- a) Sundarbans
- b) Banni Grassland
- c) Thar desert
- d) Lower slopes of Western Himalayas

Q.36) Consider the following statements with reference to the Central Administrative Tribunals (CAT):

1. The Central Administrative Tribunal (CAT) was set up in 1975 with the principal bench at Mumbai.
2. No fees is required to be paid by the applicant in CAT.
3. The applicant may appear either in person or through a lawyer.

Which of the statements given above is/are correct?

- a) 1 only
- b) 1 and 3 only
- c) 3 only
- d) 1, 2 and 3

Q.37) Consider the following statements with reference to the District Judge:

1. The appointment, posting and promotion of district judges in a state are made by the Chief justice of the concerned High Courts.
2. A person to be appointed as district judge should be recommended by the high court for appointment.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.38) Consider the following statements with reference to the permanent Lok Adalat:

1. A district judge can be appointed as the Chairman of the permanent Lok Adalat..
2. Every award made by the Permanent Lok Adalat shall be final and binding on all the parties.
3. Permanent Lok Adalat does not have jurisdiction in matters relating to an offence not compoundable under any law.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Q.39) Consider the following statements with reference to the Gram Nyayalays:

1. The Gram Nyayalaya shall be established for every Panchayat at intermediate level.
2. Nyayadhikaris who will preside over these Gram Nyayalayas are strictly judicial officers.
3. Gram Nyayalaya shall exercise the powers of Civil Courts only and not criminal courts.
4. The Gram Nyayalaya shall be bound by the rules of evidence provided in the Indian Evidence Act, 1872.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 1, 2 and 4 only
- c) 2, 3 and 4 only
- d) 1, 2, 3 and 4

Q.40) 'Section 79' of The Information Technology Act, 2000 is often seen in news. In this context, which one of the following is the correct content of this section?

- a) Exemption from liability of intermediary
- b) Punishment for offensive comments
- c) Power of central government to make rules
- d) Compensation for failure to protect data

SFG 2022 | LEVEL 2 | Test 4 |

Q.34) अनुच्छेद 323A और 323B के बीच अंतर के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. अनुच्छेद 323A का उद्देश्य केवल लोक सेवा मामलों के लिए न्यायाधिकरणों की स्थापना करना है।
2. अनुच्छेद 323 B के तहत ट्रिब्यूनल केवल संसद द्वारा स्थापित किए जा सकते हैं।
3. अनुच्छेद 323 B के तहत न्यायाधिकरणों का एक पदानुक्रम बनाया जा सकता है।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 3
- b) केवल 1 और 3
- c) केवल 2
- d) केवल 1 और 2

Q.35) "इस पारिस्थितिकी तंत्र का निर्माण हजारों वर्षों में सिंधु और अन्य नदियों द्वारा जमा किए गए तलछट से हुआ है। यहाँ की वनस्पति विरल है और वर्षा पर अत्यधिक निर्भर है। इसमें कम उगने वाले फोर्ब्स और ग्रामीनोइड्स का प्रभुत्व है, जिनमें से कई हेलोफाइल (नमक-सहिष्णु) हैं, साथ ही बिखरे हुए पेड़ और झाड़ियाँ भी हैं। मालधारी आदिवासी समुदाय इसी पारिस्थितिकी तंत्र में निवास करता है।"

भारत में निम्नलिखित में से किस पारिस्थितिक तंत्र का उल्लेख उपरोक्त पैराग्राफ में किया गया है?

- a) सुंदरबन
- b) बन्नी घास का मैदान
- c) थार मरुस्थल
- d) पश्चिमी हिमालय के निचले ढलान

Q.36) केंद्रीय प्रशासनिक न्यायाधिकरण (CAT) के संदर्भ में निम्नलिखित कथनों पर विचार करें:

1. केन्द्रीय प्रशासनिक न्यायाधिकरण (CAT) की स्थापना 1975 में मुंबई में प्रिंसिपल बेंच के साथ की गई थी।
2. कैट में आवेदक द्वारा किसी शुल्क का भुगतान करने की आवश्यकता नहीं है।
3. आवेदक व्यक्तिगत रूप से या वकील के माध्यम से उपस्थित हो सकता है।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1
- b) केवल 1 और 3
- c) केवल 3
- d) 1, 2 और 3

Q.37) जिला न्यायाधीश के संदर्भ में निम्नलिखित कथनों पर विचार करें:

1. किसी राज्य में जिला न्यायाधीशों की नियुक्ति, तैनाती और पदोन्नति संबंधित उच्च न्यायालयों के मुख्य न्यायाधीश द्वारा की जाती है।
2. जिला न्यायाधीश के रूप में नियुक्त होने वाले व्यक्ति की नियुक्ति के लिए उच्च न्यायालय द्वारा सिफारिश की जानी चाहिए।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1

- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

Q.38) स्थायी लोक अदालत के संदर्भ में निम्नलिखित कथनों पर विचार करें:

1. स्थायी लोक अदालत के अध्यक्ष के रूप में एक जिला न्यायाधीश को नियुक्त किया जा सकता है।
2. स्थायी लोक अदालत द्वारा दिया गया प्रत्येक निर्णय अंतिम होगा और सभी पक्षों के लिए बाध्यकारी होगा।
3. स्थायी लोक अदालत के पास किसी कानून के तहत संयोजनीय नहीं होने वाले अपराध से संबंधित मामलों में अधिकार क्षेत्र नहीं है।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1 और 2
- b) केवल 2 और 3
- c) केवल 1 और 3
- d) 1, 2 और 3

Q.39) ग्राम न्यायालयों के संदर्भ में निम्नलिखित कथनों पर विचार करें:

1. मध्यवर्ती स्तर पर प्रत्येक पंचायत के लिए ग्राम न्यायालय की स्थापना की जाएगी।
2. इन ग्राम न्यायालयों की अध्यक्षता करने वाले न्यायाधिकारी दृढ़ता से न्यायिक अधिकारी होते हैं।
3. ग्राम न्यायालय केवल दीवानी न्यायालयों की शक्तियों का प्रयोग करेगा न कि आपराधिक न्यायालयों की।
4. ग्राम न्यायालय भारतीय साक्ष्य अधिनियम, 1872 में उपलब्ध कराए गए साक्ष्य के नियमों से बाध्य होगा।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1 और 2
- b) केवल 1, 2 और 4
- c) केवल 2, 3 और 4
- d) 1, 2, 3 और 4

Q.40) सूचना प्रौद्योगिकी अधिनियम, 2000 की 'धारा 79' अक्सर खबरों में देखी जाती है। इस संदर्भ में, निम्नलिखित में से कौन इस धारा का सही विषय है?

- a) मध्यस्थ के दायित्व से छूट
- b) आपत्तिजनक टिप्पणियों के लिए सजा
- c) नियम बनाने की केंद्र सरकार की शक्ति
- d) डेटा की सुरक्षा में विफलता के लिए मुआवजा

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Q.41) Consider the following statements with reference to the Family Courts:

1. Matters related to the maintenance of children and parents falls within the jurisdiction of Family Courts.
2. The act allows the State Governments to set up a Family Court only in cities having a population exceeding five million.
3. The act provides for only one right of appeal which shall lie to the district Court.

Which of the statements given above is/are correct?

- a) 1 only
- b) 1 and 2 only
- c) 2 and 3 only
- d) 3 only

Q.42) With reference to the judicial review, consider the following statements:

1. It is the power of the Supreme Court to examine the constitutionality of legislative enactments and not executive orders of the governments.
2. The imposition of President's Rule in a State is subject to judicial review.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.43) Consider the following statements with reference to the e-Lok Adalats:

1. e-Lok Adalats can be organized at both national and State level.
2. In e-Lok Adalats, parties and lawyers are given the facility to present their case by making a WhatsApp video call.
3. Maharashtra was the first state to start e-Lok Adalats in India.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 and 3 only
- c) 1 and 2 only
- d) 1 and 3 only

Q.44) Consider the following statements with reference to the Right to Shebaitship:

1. According to the Supreme Court, the Shebait is a custodian of idol and is entitled to manage the idol's property.
2. Death of a ruler completely nullifies the royal family's Shebaitship of a temple.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.45) Which of the following will be the benefits of first Nano Urea Liquid launched by Indian Farmers Fertiliser Cooperative Limited (IFFCO) over conventional urea?

1. Reduced dependence on urea imports
2. Improved quality of underground water
3. Higher productivity of crops
4. Enhanced income of farmers

Select the correct answer using the codes given below:

- a) 1 and 3 only
- b) 2 and 4 only
- c) 1, 2 and 3 only
- d) 1, 2, 3 and 4 only

Q.46) Consider the following statements with reference to the Quasi-Judicial bodies:

1. Decisions of Quasi-Judicial bodies always create a new law.
2. Their powers are limited to a very specific area of expertise and authority.
3. Article 280 of the Constitution of India provides for a Finance Commission as a quasi-judicial body.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Q.47) With reference to the Competition Commission of India (CCI), consider the following statements:

1. It is a non-statutory body established by the executive action.
2. It has the responsibility to impart training on competition issues.
3. It consists of maximum four members including chairperson.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 1, 2 and 3
- c) 2 only
- d) 1 only

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Q.41) परिवार न्यायालय के संदर्भ में निम्नलिखित कथनों पर विचार करें:

1. बच्चों और माता-पिता के भरण-पोषण से संबंधित मामले परिवार न्यायालय के अधिकार क्षेत्र में आते हैं।
2. अधिनियम राज्य सरकारों को केवल पांच मिलियन से अधिक आबादी वाले शहरों में परिवार न्यायालय स्थापित करने की अनुमति देता है।
3. अधिनियम में अपील के केवल एक अधिकार का प्रावधान है जो जिला न्यायालय में होगा।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1
- b) केवल 1 और 2
- c) केवल 2 और 3
- d) केवल 3

Q.42) न्यायिक समीक्षा के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. यह सर्वोच्च न्यायालय की शक्ति है कि वह विधायी अधिनियमों की संवैधानिकता की जांच करे, न कि सरकारों के कार्यकारी आदेशों की।
2. किसी राज्य में राष्ट्रपति शासन लागू करना न्यायिक समीक्षा के अधीन है।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

Q.43) ई-लोक अदालतों के संदर्भ में निम्नलिखित कथनों पर विचार करें:

1. राष्ट्रीय और राज्य दोनों स्तरों पर ई-लोक अदालतों का आयोजन किया जा सकता है।
2. ई-लोक अदालतों में पक्षकारों और वकीलों को व्हाट्सएप वीडियो कॉल करके अपना पक्ष रखने की सुविधा दी जाती है।
3. महाराष्ट्र भारत में ई-लोक अदालत शुरू करने वाला पहला राज्य था।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1
- b) केवल 2 और 3
- c) केवल 1 और 2
- d) केवल 1 और 3

Q.44) न्यासिता के अधिकार/ Right to Shebaitship के संदर्भ में निम्नलिखित कथनों पर विचार करें:

1. सुप्रीम कोर्ट के अनुसार, न्यासी मूर्ति का संरक्षक और मूर्ति की संपत्ति का प्रबंधन करने का हकदार है।
2. एक शासक की मृत्यु शाही परिवार के मंदिर के न्यासिता को पूरी तरह से समाप्त कर देती है।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1
- b) केवल 2

- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

Q.45) पारंपरिक यूरिया पर इंडियन फार्मर्स फर्टिलाइजर कोऑपरेटिव लिमिटेड (इफको) द्वारा लॉन्च किए गए पहले नैनो यूरिया लिक्विड का निम्नलिखित में से कौन सा लाभ होगा?

1. यूरिया आयात पर कम निर्भरता
2. भूमिगत जल की गुणवत्ता में सुधार
3. फसलों की उच्च उत्पादकता
4. किसानों की बढ़ी आमदनी

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1 और 3
- b) केवल 2 और 4
- c) केवल 1, 2 और 3
- d) 1, 2, 3 और 4

Q.46) अर्ध-न्यायिक निकायों के संदर्भ में निम्नलिखित कथनों पर विचार करें:

1. अर्ध-न्यायिक निकायों के निर्णय हमेशा एक नया कानून बनाते हैं।
2. उनकी शक्तियां विशेषज्ञता और अधिकार के एक बहुत ही विशिष्ट क्षेत्र तक सीमित हैं।
3. भारत के संविधान का अनुच्छेद 280 एक अर्ध-न्यायिक निकाय के रूप में एक वित्त आयोग का प्रावधान करता है।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1 और 2
- b) केवल 2 और 3
- c) केवल 1 और 3
- d) 1, 2 और 3

Q.47) भारतीय प्रतिस्पर्धा आयोग (CCI) के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. यह कार्यकारी कार्रवाई द्वारा स्थापित एक गैर-सांविधिक निकाय है।
2. इस पर प्रतिस्पर्धा के मुद्दों पर प्रशिक्षण प्रदान करने की जिम्मेदारी है।
3. इसमें अध्यक्ष सहित अधिकतम चार सदस्य होते हैं।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1 और 2
- b) 1, 2 और 3
- c) केवल 2
- d) केवल 1

**SFG 2022 | LEVEL 2 | Test 4 | **

Q.48) Consider the following statements:

1. In criminal matters, appeals from the judgements of sessions court may lie to the high courts if the sentence is one of imprisonment for more than seven years.
2. A High court can withdraw a case pending in a subordinate court.
3. A high court has the power of superintendence over military courts functioning in its territorial jurisdiction.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 only
- c) 3 only
- d) 1 and 3 only

Q.49) In which of the following cases, the Supreme Court allowed the appeals from the judgements of the tribunals to be made in the High Courts?

- a) Ujjam Bai vs State of Uttar Pradesh (1962)
- b) L. Chandra Kumar vs Union of India (1997)
- c) Minerva Mills Ltd. vs Union of India (1980)
- d) Indira Nehru Gandhi vs Raj Narnia (1975)

Q.50) According to Indian Patent Act, 1970, under which of the following conditions can central government issue a compulsory license after the grant of the patent?

1. National emergency
2. Global Pandemic
3. Extreme Urgency
4. Case of public non-commercial use.

Select the correct answer using the code given above:

- a) 1, 2 and 3 only
- b) 1, 3 and 4 only
- c) 2, 3 and 4 only
- d) 1, 2, 3 and 4

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Q.48) निम्नलिखित कथनों पर विचार करें:

1. आपराधिक मामलों में, सत्र न्यायालय के निर्णयों की अपील उच्च न्यायालयों में की जा सकती है यदि सजा सात साल से अधिक के कारावास की है।
2. एक उच्च न्यायालय अधीनस्थ न्यायालय में लंबित मामले को वापस ले सकता है।
3. एक उच्च न्यायालय के पास अपने क्षेत्रीय अधिकार क्षेत्र में कार्यरत सैन्य अदालतों पर अधीक्षण की शक्ति है।

निम्नलिखित में से कौन सा/से कथन सही है/हैं?

- a) केवल 1 और 2
- b) केवल 2
- c) केवल 3
- d) केवल 1 और 3

Q.49) निम्नलिखित में से किस मामले में, सर्वोच्च न्यायालय ने न्यायाधिकरणों के निर्णयों की अपीलों को उच्च न्यायालयों में करने की अनुमति दी है?

- a) उज्जम बाई बनाम उत्तर प्रदेश राज्य (1962)
- b) एल चंद्र कुमार बनाम भारत संघ (1997)
- c) मिनर्वा मिल्स लिमिटेड बनाम भारत संघ (1980)
- d) इंदिरा नेहरू गांधी बनाम राज नार्निया (1975)

Q.50) भारतीय पेटेंट अधिनियम, 1970 के अनुसार, निम्नलिखित में से किस शर्त के तहत केंद्र सरकार पेटेंट देने के बाद अनिवार्य लाइसेंस जारी कर सकती है?

1. राष्ट्रीय आपातकाल
2. वैश्विक महामारी
3. अत्यधिक तात्कालिकता
4. सार्वजनिक गैर-व्यावसायिक उपयोग का मामला।

ऊपर दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1, 2 और 3
- b) केवल 1, 3 और 4
- c) केवल 2, 3 और 4
- d) 1, 2, 3 और 4

Q.1) Which of the following Articles confer the power of judicial review on the Supreme Court and the High Courts?

1. Article 12
2. Article 13
3. Article 32
4. Article 226

Select the correct answer using the code given below:

- a) 1, 2 and 3 only
- b) 2, 3 and 4 only
- c) 3 and 4 only
- d) 1, 2, 3 and 4

Ans) b

Exp) Option b is correct.

Judicial Review refers to the power of the judiciary to interpret the constitution and to declare any such law or order of the legislature and executive void, if it finds them in conflict the Constitution of India

Statement 1 is incorrect. Article 12 of the Indian Constitution, defines 'State' for the purpose of Part -III and Part - IV. State as provided under Article 12 of the Constitution has four components- 1) The Government and Parliament of India. Government means any department or institution of department. 2)The Government and Legislature of each State. 3)Local Authorities within the territory of India. 4)Other Authorities

Statement 2 is correct. Under Article 13 It is stated that the State or the Union shall not make such rules that takes away or abridges the essential rights of the people. If any law made by the Parliament or the State Legislature contravenes the provisions of this Article, it shall be void.

Article 13 in fact provides for the judicial review of all legislations in India. This power has been conferred on the High courts and the Supreme court of India which can declare a law unconstitutional if it is inconsistent with any of the provisions of part 3rd of the constitution.

Statement 3 is correct. Article 32 guarantees the right to move the **Supreme Court for the enforcement** of the Fundamental Rights and empowers the Supreme Court to issue directions or orders or writs for that purpose.

Statement 4 is correct. Article 226 empowers the High Courts to issue directions or orders or writs for the enforcement of the Fundamental Rights and any other purpose.

Source: Laxmikanth 6th edition chapter-7 page-7.3 , 7.22

Q.2) Consider the following statements regarding Public interest litigation (PIL)

1. Unlike Judicial activism, Public interest litigation (PIL) is mentioned in constitution.
2. Public Interest Litigation cannot be filed before the High Courts.
3. A Public Interest Litigation cannot be filed against the Central government.

Which of the statements given above **is/are incorrect**?

- a) 1 and 2 only
- b) 2 only
- c) 3 only
- d) 1, 2 and 3

Ans) d

Exp) Option d is correct.

Public interest litigation is not defined in any statute or in any act. It has been interpreted by judges to consider the intent of public at large. Judicial activism is the interpretation of the constitution to advocate contemporary values and conditions. On the other hand, judicial restraint is limiting the powers of the judges to strike down a law.

Statement 1 is incorrect: Both Public interest litigation (PIL) and judicial activism are not mentioned in constitution. The **first signs of judicial activism appeared** in the realm of constitutional law when the Supreme Court ruled that the parliament could amend any part of the constitution save what they considered the 'basic structure of the constitution'. PIL originated and developed in USA in 1960s. In India,

it is a product of **judicial activism of Supreme court**. It was introduced in early 1980s by Justice **PN Bhagwati and V. Krishna Iyer**.

Statement 2 is incorrect: A Petitioner can file the Public Interest Litigation before the Supreme Court or the High Court of that State.

Statement 3 is incorrect: A Public Interest Litigation can be filed against a State/ Central Govt., Municipal Authorities, and not any private party. However, Private party can be included in the PIL as Respondent, **after making concerned state authority**, a party. For example- if there is a Private factory in Delhi, which is causing pollution, then people living nearby, or any other person can file a PIL against the Government of Delhi, Pollution Control Board, and against the private factory.

Source: Laxmikanth 6th edition chapter-28 page-28.1, chapter-29 page-29.1

<https://legalserviceindia.com/article/l273-Public-Interest-Litigation.html>

<https://opinionfront.com/judicial-restraint-vs-judicial-activism>

Q.3) “It is a theory of judicial interpretation that encourages judges to limit the exercise of their own power. According to this theory, there is no scope of interpretation of the Constitution, and changes can be made through amendments only. The judge must stick to the laws enacted by the legislature and should uphold them unless they are unconstitutional.”

The above paragraph refers to which of the following theory?

- a) Judicial Activism
- b) Judicial Overreach
- c) Judicial Restraint
- d) Judicial Review

Ans) c

Exp) Option c is correct.

Judicial activism and judicial restraint are facets of that uncourageous creativity and pragmatic wisdom. Judicial Restraint is a theory of judicial interpretation that encourages judges to **limit the exercise of their own power**. Judicial restraint limits the power of a judge to interpret law in a broad manner or strike down a legislation. In judicial activism, the judge takes more freedom to deviate from conventional interpretation, so that a law can be applied to a given set of facts. He can overrule laws as well as judgments. According to the philosophy of judicial restraint, there is no scope of interpretation of the Constitution, and changes can be made through amendments only. In case of judicial activism, Constitution can be interpreted in a broad manner. According to the theory of judicial restraint, the judge **must stick to the laws enacted by the legislature and should uphold them unless they are unconstitutional**. In judicial activism, the judge can interpret laws according to the changing needs of the society and prevent injustice.

When the judiciary appears to have transgressed its jurisdiction, triggering a grave **violation of the doctrine of separation of powers**, the term “**judicial overreach**” is widely used. It is also commonly known as judicial adventurism.

Source: Laxmikanth 6th edition chapter-28 page-28.2

<http://www.legalservicesindia.com/article/2019/Judicial-Activism-and-Judicial-Restraint.html#:~:text=Judicial%20Restraint%20is%20a%20theory%20of%20judicial%20interpretation,strike%20down%20laws%20unless%20they%20are%20obviously%20unconstitutional.>

Q.4) In which of the following cases, the High court has original jurisdiction?

- 1. Civil cases in which subordinate courts are not authorized to try cases
- 2. A dispute between two states
- 3. Criminal cases in which subordinate courts are not authorized to try cases
- 4. Disputes related to the election of members of Parliament
- 5. Matters related to Finance Commission

Select the correct answer using the code given below:

- a) 1, 3 and 4 only
- b) 4 only
- c) 1, 4 and 5 only
- d) 1 and 5 only

Ans) a

Exp) Option a is correct.

The matters that can be directly brought to the High Court is called original jurisdiction of High court without prior decision.

Statement 1 and Statement 3 are correct. A High Court exercises its original civil and criminal jurisdiction only if the subordinate courts are not authorized by law to try such matters for lack of pecuniary, territorial jurisdiction. High courts may also enjoy original jurisdiction in certain matters if so, designated specifically in a state or federal law. In cases of higher value, only the four high courts (Calcutta, Bombay, Madras, and Delhi High Courts) have original civil jurisdiction, but no original criminal jurisdiction. Generally, the district judge possesses original jurisdiction in both civil and criminal cases.

Statement 2 is incorrect The original jurisdiction regarding the dispute between two states is handled by Supreme Court not High court.

Statement 4 is correct. Disputes related to the election of members of Parliament comes under the original jurisdiction of High court.

Statement 5 is incorrect. Matters related to Finance Commission comes under the original jurisdiction of Supreme Court.

Source: Laxmikanth 6th edition chapter-34 page-34.5, 34.6

<https://www.latestlaws.com/judiciary/high-court/>

Q.5) With reference to Foreign Contribution Regulation Act, consider the following statements:

1. The act is applicable to all the associations, groups, and NGOs which intend to receive foreign donations.
2. It is mandatory for NGOs to open an exclusive Bank account with the RBI to receive foreign donations.
3. The donations received in Indian rupees by NGOs from any foreign source is treated as foreign contribution.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) 1 and 3 only
- d) 1, 2 and 3

Ans) c

Exp) Option c is correct.

Statement 1 is correct.

Foreign Contribution (Regulation) Act is an act of Parliament enacted in 1976 and amended in 2010 to regulate foreign donations. It aimed to ensure that such contributions do not adversely affect internal security. It is applicable to all associations, groups, and NGOs which intend to receive foreign donations.

Statement 2 is incorrect.

FCRA Amendment Act, 2020 made it compulsory for the NGOs to open an exclusive Bank account with the State Bank of India in New Delhi to receive foreign donations.

Statement 3 is correct.

Recently, the Ministry of Home Affairs (MHA) issued new regulating guidelines to banks under Foreign Contribution (Regulation) Act, 2010. It states that the donations received in Indian rupees by non-governmental organisations (NGOs) and associations from any foreign source (even if that source is located in India at the time of such donation) should be treated as foreign contribution.

Source: FCRA Amendments are Crippling Work of NGOs -ForumIAS Blog

India tightens oversight on funds received by NGOs - The Hindu

Q.6) Consider the following statements regarding Supreme Court of India.

1. Seat of the Supreme Court can be set up anywhere in India.
2. No constitutional amendment is required for the purpose of setting up of cassation benches of Supreme Court in various regions of India.
3. At least five judges need to hear cases that involve a substantial question of law as to the interpretation of the Constitution.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 only
- c) 3 only
- d) 1, 2 and 3

Ans) d

Exp) Option d is correct.

The Supreme Court of India is the apex court in India. It is a constitutional body as laid down by Part V of the Chapter V of the Constitution of India.

Statement 1 is correct: As per article 130, Seat of the Supreme Court is Delhi, but it can hold its **meeting** anywhere in India. The Supreme Court shall sit in Delhi or in such other place or places, as the Chief Justice of India may, with the approval of the President, from time to time.

Statement 2 is correct: Article 130 clearly interprets that no constitutional amendment may be required for the purpose of setting up cassation benches in four regions and a Constitution Bench at Delhi. Action by the chief justice of India with the president's approval may be enough for setting up of it.

Statement 3 is correct: Article 145(3) says **at least five judges need to hear cases that involve "a substantial question of law as to the interpretation" of the Constitution**, or any reference under Article 143, which deals with the power of the President of India to consult the Supreme Court.

Constitution benches can be larger. For example, nine judges were on the bench that unanimously declared privacy to be a fundamental right in August 2017.

Source: Laxmikanth 6th edition chapter-26 page-26.4

Q.7) Which of the following guidelines should be followed in admitting public interest litigation (PIL)?

1. Any third party can challenge a sentence awarded to the convicts through a PIL.
2. PILs may be filed under Article 32 and Article 226 of the Indian Constitution.
3. Letter-petitions on non-payment of minimum wages to workers can be entertained as PIL.

Select the correct answer using the code given below:

- a) 1 and 2 only
- b) 2 only
- c) 2 and 3 only
- d) 1, 2 and 3

Ans) c

Exp) Option c is correct.

Public Interest Litigation means, litigation filed in a court of law, for the protection of Public Interest, such as pollution, Terrorism, Road safety, constructional hazards etc. It is not defined in any statute or in any act. It has been interpreted by judges to consider the intent of public at large.

Statement 1 is incorrect: A third party who is a total stranger to the prosecution which ended in the conviction of the accused has no 'locus standi' to challenge the conviction and sentence awarded to the convicts through a PIL. It was upheld by the Supreme Court in Simaranjit Singh Mann vs. Union of India, 1992.

Statement 2 is correct: PILs may be filed either before the Hon'ble Supreme Court of India under Article 32 of the Indian Constitution or any High Court under Article 226 of the Indian Constitution. Even a simple letter or a postcard addressed to the Chief Justice of India or the Chief Justice of a High Court may suffice. The court may then choose to take cognizance of the letter and convert it into a PIL as in the case of Rural Litigation & Entitlement Kendra, Dehradun vs. State of Uttar Pradesh. Here the Hon'ble Court converted a letter raising the issue of unauthorised and illegal mining in Mussoorie Hills into a writ petition under Public Interest Litigation.

Statement 3 is correct:

Letter-petitions falling under the following categories alone will ordinarily be entertained as Public Interest Litigation:

- 1) Non-payment of minimum wages to workers and exploitation of casual workers and complaints of violation of Labour Laws (except in individual cases).

Source: <http://www.ignou.ac.in/upload/bswe-02-block6-unit-29-small%20size.pdf>

<https://citizenmatters.in/a-guide-to-filing-a-public-interest-litigation-pil-4539>

Q.8) Which of the following statements is/are correct regarding Judicial Activism?

1. The requirement of substantive due process into Article 21 was introduced by judicial activism.
2. Judicial Activism is the exercise of judicial power without any backing of the law.
3. Judicial Activism is a philosophy whereby judges allow their personal views about public policy.

Select the correct answer using the code given below:

- a) 1 and 2 only
- b) 2 only
- c) 1 and 3 only
- d) 3 only

Ans) c

Exp) Option c is correct.

Judicial activism refers to a "philosophy of judicial decision-making whereby judges allow their personal views about public policy, among other factors, to guide their decisions

Statement 1 is correct: In *A.K. Gopalan v. State of Madras*, the Indian Supreme Court **rejected** the argument that to deprive a person of his life or liberty not only the procedure prescribed by law for doing so must be followed but also that such procedure must be fair, reasonable and just. To hold otherwise would be to introduce the due process clause in Article 21 which had been deliberately omitted when the Indian Constitution was being framed.

However, subsequently in *Maneka Gandhi v. Union of India*, **this requirement of substantive due process was introduced into Article 21 by judicial interpretation.**

The Supreme Court, in *Ramlila Maidan Incident* (2012) and *Selvi v. State of Karnataka* (2010), have repeatedly held that substantive due process and due process generally are a part of Indian constitutional law under Article 21 of the Constitution.

Statement 2 is incorrect: Judicial Activism means **active interpretation of existing legislation** by a judge. It enhances the **utility of that legislation for social betterment**. Thus, it does not mean to exercise its judicial power without any legislative backing.

Statement 3 is correct: Judicial activism refers to a "philosophy of judicial decision-making whereby judges allow their **personal views** about public policy, among other factors, to guide their decisions".

Source: <http://www.mcrhrdi.gov.in/crashcourse/presentations/SG%2003%20%20Judicial%20Activism.pdf>

Laxmikanth 6th edition chapter-28 page-28.1

Q.9) Consider the following statements regarding High courts:

1. The investigation committee of the Parliament for the removal of a judge of high court should consist a distinguished jurist as a member.
2. The only ground for the removal of judge of High court is the violation of the Constitution.
3. The strength of a high court is determined by the Parliament.

Which of the statements given above is/are correct?

- a) 1 only
- b) 1 and 2 only
- c) 2 and 3 only
- d) 3 only

Ans) a

Exp) Option a is correct.

As per the Judges Inquiry Act, 1968, a complaint against a Judge of a High court has to be made through a resolution either by 100 members of the Lok Sabha or 50 Rajya Sabha members. After the MPs submit a duly signed motion to this effect to their respective presiding officers – Chairman of the Rajya Sabha or Speaker of the Lok Sabha.

Statement 1 is correct:

Removal proceedings against a Supreme Court or a High Court judge can be initiated in any of the houses of Parliament.

If the motion of removal is admitted, the Speaker or Chairman (who receives it) will constitute a three-member committee to investigate the complaint. It will comprise: (i) a Supreme Court judge; (ii) Chief

Justice of a High Court; and (iii) a distinguished jurist. The committee will frame charges based on which the investigation will be conducted.

Statement 2 is incorrect: There are 2 grounds for the removal of judge of High court.

- 1) Ground of removal is "**Misbehaviour or incapacity**"
- 2) Ground of Impeachment is "**Violation of Constitution**"

Statement 3 is incorrect: The Constitution does not specify the strength of High Court and leaves it to discretion of President. The strength of a high court is **determined by the President** depending on the requirements of that state.

Source: Laxmikanth 6th edition chapter-34 page-34.1, 34.3

<http://www.legalservicesindia.com/article/1690/Judges-of-Supreme-Court-and-High-Court-can-be-Impeach---A-Controversy.html>

Q.10) Which of the following are responsible for formation of the highly reactive gases known as oxides of nitrogen or nitrogen oxides?

1. Burning of Coal
2. Microbial processes in soil
3. Lightning strike
4. Coral Reef Formation
5. Manufacturing of fertilizers.

Select the correct answer using the codes given below:

- a) 1, 2 and 3 only
- b) 1, 2 and 5 only
- c) 1, 2, 3 and 5 only
- d) 1, 2, 3, 4 and 5

Ans) c

Exp) Option c is correct.

Nitrogen Dioxide (NO₂) belongs to one of the highly reactive gases known as oxides of nitrogen or nitrogen oxides (NO_x).

Sources of nitrogen oxides (NO_x) are:

Natural Sources: A natural source of nitrogen oxides occurs from a lightning stroke. The very high temperature in the vicinity of a lightning bolt causes the gases oxygen and nitrogen in the air to react to form **nitric oxide**. It is also formed at small extent by microbial processes in soils.

Anthropogenic Sources:

- 1) NO₂ is formed when fossil fuels like **coal, oil, gas and diesel are burned at high temperatures**. It is also formed during the burning of wood and natural gases.
- 2) Nitrogen oxides are released during **manufacturing of nitrogen fertilizers**. Though nitrous oxide is emitted during its application, it is then reacted in atmosphere to form nitrogen oxides.

Coral Reefs are formed of colonies of coral polyps held together by **calcium carbonate**. Most coral reefs are built from stony corals, whose polyps cluster in groups. It has nothing to do with formation of nitrogen oxide.

Source: Long-term "nitrogen dioxide"(NO₂) exposure affects lungs: Study (forumias.com)

Sources of Nitrogen Oxides - Chemistry LibreTexts

Nitrogen Oxides (NO_x) | Air Pollution Information System (apis.ac.uk)

Q.11) With reference to the Supreme Court of India, consider the following statements:

1. The present Supreme Court of India was constituted by the Government of India Act, 1935.
2. The original Constitution fixed the strength of the Supreme Court at 8 including Chief Justice of India.
3. The strength of the Supreme Court has been increased to 40 by the Supreme Court (Number of Judges) Amendment Act, 2019.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 only
- c) 1 and 3 only
- d) 3 only

Ans) b

Exp) Option b is correct.

India has a single system of courts, adopted from the Government of India Act of 1935, which enforces both Central laws as well as the state laws.

Statement 1 is incorrect: The **Federal Court of India (and not the present Supreme Court of India)** was established under the Government of India Act of 1935. The Supreme Court of India was inaugurated on January 28, 1950, which succeeded the Federal Court of India. The jurisdiction of the Supreme Court is greater than that of Federal Court of India. This is because the Supreme Court has replaced the British Privy Council as the highest court of appeal.

Statement 2 is correct: The original Constitution of 1950 envisaged a Supreme Court with a **Chief Justice and 7 puisne Judges** - leaving it to Parliament to increase this number. The Parliament has increased this number of **other judges** progressively to 10 in 1956, to 13 in 1960, to 17 in 1977, to 25 in 1986, to 30 in 2008 and to 33 in 2019.

Statement 3 is incorrect: At present, the Supreme Court consists of **thirty-four judges (one chief justice and thirty-three other judges)**. This was done by the enactment of the Supreme Court (Number of Judges) Amendment Act, 2019.

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-26, Supreme Court

Q.12) Consider the following statements:

1. The National Judicial Appointments Commission (NJAC) Act was declared unconstitutional by the Supreme Court as it violated the basic structure of the Constitution.
2. The Supreme Court upheld the primacy of the collegium system following the NJAC judgement.
3. The collegium was expanded to a five-member body of the Supreme Court in the Third Judges case.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 and 3 only
- c) 3 only
- d) 1, 2 and 3

Ans) d

Exp) Option d is correct.

The Fourth Judges Case (2015) related to 99th Constitutional Amendment Act of 2014 and the National Judicial Appointments Commission Act of 2014. NJAC replaced the collegium system of appointing judges to the Supreme Court and High Courts.

Statement 1 is correct: In the Fourth Judges Case (2015), the Supreme Court declared the National Judicial Appointments Commission (NJAC) Act as **unconstitutional and void**. The Court held the Act encroached upon the judiciary's independence and **undermined the basic structure**.

Statement 2 is correct: The Supreme Court upheld the **primacy of the collegium system** of appointment of judges. The court held that NJAC gave the government significant powers to appoint judges which would affect the independence of the judiciary.

Statement 3 is correct: In **Third Judges Case (1998)**, the Supreme Court **expanded the collegium to a five-member body** to include the CJI and the four senior-most judges of the court after the CJI.

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-26, Supreme Court

Q.13) Consider the following statements with respect to the appointment of Chief Justice of India:

1. The senior most judge of the Supreme Court should alone be appointed as Chief Justice of India as per a recent amendment of the Constitution.
2. No judge is appointed so far as the chief justice of India by superseding the then senior-most judge.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) d

Exp) Option d is correct.

Articles 124(2) and 217 of the Constitution governs the appointment of judges to the Supreme Court and High Courts respectively.

Statement 1 is incorrect: From 1950 to 1973, the practice has been to appoint the senior most judge of the Supreme Court as the Chief Justice of India. However, this established convention was broken in 1973. In the **Second Judges Case (1993)**, the Supreme Court ruled that the senior most judge of the Supreme Court should alone be appointed to the office of the Chief Justice of India. No constitutional amendment has been made in this context.

Statement 2 is incorrect: **A.N. Ray** was the first judge to be appointed as the Chief Justice of India by superseding three senior judges in 1973. In 1977, M.U. Beg was appointed as the Chief Justice of India by superseding the then senior-most judge.

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-26, Supreme Court

Q.14) With reference to the comparison between the judge of the Supreme Court and the High Court, consider the following statements:

1. While judge appointed to the Supreme Court should be a citizen of India, no such condition is required for appointment of judge to High Court.
2. No 'distinguished jurist' has been appointed as a judge of Supreme Court so far.
3. The salaries of judges of both Supreme Court and High Courts are charged on the Consolidated Fund of India.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 and 3 only
- c) 2 only
- d) 1, 2 and 3

Ans) c

Exp) Option c is correct.

India follows a single integrated judicial system with Supreme Court as the apex court and the high court operating below the Supreme Court.

Statement 1 is incorrect: A person to be appointed as a judge of **either the Supreme Court or the High Court should be a citizen of India**. Thus, it is also a mandatory condition for appointment of judges to High Courts.

Statement 2 is correct: A distinguished jurist in the opinion of the President can only be appointed as the judge of the Supreme Court. There are three categories of persons who are qualified to be appointed as judges of the Supreme Court. These are: judges of the High Courts, advocates with at least 10 years of experience in the High Courts, and distinguished jurists.

In its 71 years of existence, the Supreme Court has not seen a single 'distinguished jurist' appointed as one of its judges.

Statement 3 is incorrect: **Only** salaries, allowances and pensions of the judges and the staff as well as all the administrative expenses of the **Supreme Court are charged on the Consolidated Fund of India**. Thus, they are non-votable by the Parliament (though they can be discussed by it). The salaries and allowances of the judges, the **salaries, allowances** and pensions of the staff as well as the administrative expenses of a **high court are charged on the consolidated fund of the state**. Thus, they are non-votable by the state legislature (though they can be discussed by it). However, the **pension of a high court judge is charged on the Consolidated Fund of India** and not the state.

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-26, Supreme Court, Chapter-34, High Court

Q.15) Consider the following statements regarding 'Olive Ridley Turtles':

1. They are the smallest and most abundant of all sea turtles found in the world.
2. They are marine herbivores consuming only plant life such as macroalgae and seagrasses.
3. They are best known for their unique mass nesting called Arribada.
4. Operation Olivia started in 1980s by Indian Coast Guard aimed at protection of Olive Ridley Turtles.

Which of the above statements are correct?

- a) 1 and 3 only
- b) 1, 2 and 3 only
- c) 3 and 4 only
- d) 1, 3 and 4 only

Ans) d

Exp) Option d is correct.

Statement 1 is correct.

The Olive Ridley turtles are the smallest and most abundant of all sea turtles found in the world. They are found in warm waters of the Pacific, Atlantic and Indian oceans.

Statement 2 is incorrect.

Olive Ridley turtles are carnivores. They feed mainly on jellyfish, shrimp, snails, crabs, molluscs and a variety of fish and their eggs.

Statement 3 is correct.

Olive Ridley turtles are best known for their **unique mass nesting** called Arribada. Under this, thousands of females come together on the same beach to lay eggs.

Statement 4 is Correct.

Operation Olivia was launched by the **Indian Coast Guard** in the early 1980s. The operation aims to **protect Olive Ridley turtles** when they arrive at the Odisha coast for breeding and nesting from November to December. **As part of the operation, ICGs conducts** round-the-clock surveillance. Assets of Indian Coast Guards such as fast patrol vessels, air cushion vessels, interceptor craft, and Dornier aircraft are used in this operation to enforce laws near the rookeries (colony of breeding animals).

Source: "Olive Ridley turtles" likely to skip mass nesting on Rushikulya river mouth this year (forumias.com)

Q.16) Consider the following statements:

1. Parliament can appoint a judge of the Supreme Court as an acting Chief Justice of India when the office of Chief Justice of India is vacant.
2. The President can appoint a retired Chief Justice of India as a current Chief Justice of India at any time.
3. The State Government should obtain the sanction of the Central Government for the creation of posts of Additional Judges in high courts.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 only
- c) 1 and 3 only
- d) 3 only

Ans) d

Exp) Option d is correct.

The judges of the Supreme Court are appointed by the President. The Chief Justice is appointed by the President after consultation with such judges of the Supreme Court and high courts as he deems necessary.

Statement 1 is incorrect: The President (not Parliament) can appoint a judge of the Supreme Court as an acting Chief Justice of India when the office of Chief Justice of India is vacant. This can also happen when the

- 1) Chief Justice of India is temporarily absent; or
- 2) Chief Justice of India is unable to perform the duties of his office.

Statement 2 is incorrect: There is **no such provision** for the appointment of a retired Chief Justice of India as current Chief Justice of India by the President at any time. At any time, the **Chief Justice of India can request a retired judge** of the Supreme Court or a retired judge of a high court (who is duly qualified for appointment as a judge of the Supreme Court) to act as a judge of the Supreme Court for a temporary period. He can do so **only with the previous consent of the President** and also of the person to be so appointed.

Statement 3 is correct: Additional Judges can be appointed by the President under **Article 224** of the Constitution. The President can **only appoint duly qualified persons as additional judges of a high court for a temporary period not exceeding two years when:**

- 1) there is a temporary increase in the business of the high court; or
- 2) there are arrears of work in the high court

When the need for this arises, the State Government should first obtain the sanction of the Central Government for the creation of such additional posts.

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-26, Supreme Court, Chapter-34, High Court
<https://doj.gov.in/appointment-of-judges/memorandum-procedure-appointment-high-court-judges>

Q.17) With reference to criminal appellate jurisdiction of the Supreme Court, consider the following statements:

1. The criminal appellate jurisdiction of the Supreme Court has been reduced since independence.
2. An appeal lies to the Supreme Court as a matter of right if the high court has reversed the acquittal of an accused person and sentenced him to death.
3. There is no provision for Special Leave Petition in criminal cases.

Which of the statements given above is/are correct?

- a) 1 only
- b) 1 and 3 only
- c) 2 only
- d) 1, 2 and 3

Ans) c

Exp) Option c is correct.

The Supreme Court is primarily a court of appeal and hears appeals against the judgements of the lower courts under four heads: constitutional matters, civil matters, criminal matters and appeals by special leave.

Statement 1 is incorrect: The Parliament had **enlarged the Criminal Appellate Jurisdiction** of the Supreme Court in 1970. Accordingly, an appeal lies to the Supreme Court from the judgement of a high court if the high court:

- 1) has on appeal, **reversed an order of acquittal of an accused person** and sentenced him to imprisonment for life or for ten years; or
- 2) has taken before itself any case from any subordinate court and **convicted the accused person and sentenced him to imprisonment for life or for ten years**

Statement 2 is correct: The Supreme Court hears appeals against the judgement in a criminal proceeding of a high court if the high court

- 1) has on appeal **reversed an order of acquittal of an accused person and sentenced him to death; or**
- 2) has taken before itself any case from any subordinate court and convicted the accused person and sentenced him to death; or
- 3) certifies that the case is a fit one for appeal to the Supreme Court

In the first two cases, an appeal lies to the Supreme Court as a matter of right (i.e., without any certificate of the high court). But if the high court has reversed the order of conviction and has ordered the acquittal of the accused, there is no right to appeal to the Supreme Court.

Statement 3 is incorrect: The appellate jurisdiction of the Supreme Court **extends to all civil and criminal cases**. The Supreme Court is authorised to grant in its **discretion special leave to appeal** from any judgement in any matter passed by any court or tribunal in the country (except military tribunal and court martial). It may be related to **any matter—constitutional, civil, criminal, income-tax, labour, revenue, advocates, etc.**

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-26, Supreme Court

Q.18) In which of the following cases has the President made reference to the Supreme Court under Article 143 of the Constitution?

1. Berubari Union case
2. Validity of Speaker's decision with regard to disqualification under Tenth Schedule
3. Punjab Termination of Agreements Act in 2004
4. Consultation process to be adopted by the Chief Justice of India for the appointment of judges to the Supreme Court
5. 2G spectrum case verdict

Select the correct answer using the code given below:

- a) 2, 3 and 4 only
- b) 1, 3, 4 and 5 only
- c) 1, 2 and 5 only
- d) 1, 2, 3, 4 and 5

Ans) b

Exp) Option b is correct.

Article 143 of the Indian Constitution authorises the President to seek the opinion of the Supreme Court.

Option b is correct: The President can seek the opinion of the Supreme Court in the two categories of matters:

- 1) On any question of law or fact of public importance which has arisen or which is likely to arise.
- 2) On any dispute arising out of any pre-constitution treaty, agreement, covenant, engagement, sanad or other similar instruments.

So far (2019), the President has made fifteen references to the Supreme Court under its advisory jurisdiction (also known as consultative jurisdiction). Some of these cases are:

- 1) Delhi Laws Act in 1951
 - 2) **Berubari Union in 1960**
 - 3) Keshav Singh's case relating to the privileges of the Legislature in 1964
 - 4) **Presidential Election in 1974**
 - 5) Cauvery Water Disputes Tribunal in 1992
 - 6) Rama Janma Bhumi case in 1993
 - 7) **Consultation process to be adopted by the Chief Justice of India in 1998**
 - 8) Constitutional validity of the Election Commission's decision on deferring the Gujarat Assembly Elections in 2002
 - 9) **Punjab Termination of Agreements Act in 2004**
 - 10) **2G spectrum case verdict** and the mandatory auctioning of natural resources across all sectors in 2012
- There was **no reference** made by the President to Supreme Court **seeking the validity of Speaker's decision with regards to disqualification under Tenth Schedule**.

Knowledge Base:

Role of Speaker with regards to Anti-Defection Law:

- 1) The **Presiding Officer of the House has the final authority** to decide on any question regarding disqualification arising out of defection.
- 2) The Supreme Court, after **Kihoto Hollohan case (1992)**, held that the decision of the Presiding Officer is not final and is **subject to judicial review** on the grounds of malafide, perversity, etc.

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-26, Supreme Court

Q.19) Consider the following statements with respect to the Pre-Constitution agreements and treaty:

- 1. It means such an agreement which was executed before the commencement of the Constitution and which continues to be in operation after commencement.
- 2. The original jurisdiction of the Supreme Court does not extend to any dispute arising out of any pre-constitution treaty and agreement.
- 3. The President cannot seek the opinion of the Supreme Court on any pre-constitution legal matters.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Ans) a

Exp) Option a is correct.

Pre-constitutional laws are the ones which were enacted and enforced before the Indian Constitution came into existence.

Statement 1 is correct: Pre-Constitution means that, which have been **entered into or executed before the commencement of the Constitution** and which **continues to be in operation** after such commencement.

Statement 2 is correct: As a federal court, the Supreme Court has exclusive original jurisdiction with regards to any dispute:

- 1) Between the Centre and one or more states; or
- 2) Between the Centre and any state or states on one side and one or more other states on the other side; or
- 3) Between two or more states.

However, this jurisdiction of the Supreme Court **does not extend a dispute arising out of any pre-Constitution treaty, agreement, covenant, engagement, sanad or other similar instrument.**

Statement 3 is incorrect: Article 143 authorises the President to seek the opinion of the Supreme Court in the two categories of matters:

- 1) On any question of law or fact of public importance which has arisen or which is likely to arise.
- 2) **On any dispute arising out of any pre-constitution treaty, agreement, covenant, engagement, sanad or other similar instruments.**

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-26, Supreme Court

Q.20) With reference to 'Faunal Diversity of India', which one of the following statements correctly differentiate Indian Pangolin from Chinese Pangolin?

- a) The Indian Pangolin do not have scales on its skin, while Chinese Pangolin have scales.
- b) The Chinese Pangolin rests in deep burrows while Indian Pangolin rests on the branches of trees.
- c) The Chinese Pangolin has smaller scales as compared to the Indian pangolin.
- d) The Indian Pangolin has dark shade on its skin, while Chinese Pangolin has light shade on its scaly skin.

Ans) c

Exp) Option c is correct.

Researchers at the Zoological Survey of India (ZSI), Kolkata have developed tools to differentiate the scales of Indian pangolin and Chinese pangolin.

The researchers characterised the morphological features of the Indian and Chinese Pangolin.

- 1) The **Chinese Pangolin has smaller scales compared to the Indian pangolin.**
- 2) A terminal scale is present on the lower side of the tail in the Indian Pangolin. But the terminal scale is absent in the Chinese Pangolin.
- 3) The dry weight of the scales from one Chinese pangolin is roughly about 500 to 700 grams. However, in the case of Indian pangolin, it goes up from 1.5 kg to 1.8 kg.

Indian Pangolin: Distribution of Indian Pangolin is wide in India, except in the arid region, high Himalayas and the North-East. The species also occurs in Bangladesh, Pakistan, Nepal and Sri Lanka.

IUCN Status: Endangered

Wildlife Protection Act, 1972: under Schedule I.

Chinese Pangolin: Distribution of Pangolins happen widely in Vietnam, Thailand, Cambodia and the northeastern part of India.

IUCN Status: Critically Endangered

Wildlife Protection Act, 1972: Under Schedule I

Source: ZSI research helps in categorising "Indian and Chinese Pangolin" scales (forumias.com)

Q.21) Consider the following statements:

1. The Supreme Court has said that the government is entitled to commit errors and achieve successes in policy matters.
2. Judicial Review is an Indian innovation propounded first in the Keshavananda Bharti case.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) a

Exp) Option a is correct.

Judicial review refers to the power of the Supreme Court and High Courts to review laws or judgments to ensure that they do not violate constitutional or legal provisions.

Statement 1 is correct: The Supreme Court has in a majority view said the government is “**entitled to commit errors or achieve successes**” in policy matters without the court’s interference as long as it follows constitutional principles. Government may examine advantages or disadvantages of a policy at its own end, it may or may not achieve the desired objective. It is **not the court’s concern to enquire into the priorities of an elected government**. Judicial review is never meant to venture into the mind of the government and thereby examine validity of a decision.

Statement 2 is incorrect: Judicial Review was **not** an Indian innovation propounded by Keshavananda Bharti case (1973). The Supreme Court previously used the power of judicial review in various cases, as for example, the **Golaknath case (1967)**, the **Bank Nationalisation case (1970)**, the Privy Purses Abolition case (1971), and later the Minerva Mills case (1980), and so on.

Source: <https://www.thehindu.com/news/national/central-vista-project-government-entitled-to-commit-errors-says-supreme-court/article33504369.ece>

Indian Polity, M. Laxmikanth, 6th Edition, Chapter-27, Judicial Review

Q.22) With reference to High Court of India, consider the following statements:

1. The institution of high court originated in India in 1862.
2. It is mandatory for every state in India to have high court with a constitutional status.
3. The territorial jurisdiction of a high court is co-terminus with the territory of a state.
4. The jurisdiction and powers of a high court cannot be curtailed in any case by the Parliament of India or the state legislature.

Which of the statements given above is/are correct?

- a) 1, 2 and 3 only
- b) 1 and 3 only
- c) 2, 3 and 4 only
- d) 1, 3 and 4 only

Ans) a

Exp) Option a is correct.

The constitution provides for a High Court at the apex of the State judiciary. The High Court of India is enshrined in Article 214 to 231 of Part VI of Indian constitution.

Statement 1 is correct The India **High Courts Act 1861** was enacted to create High Courts for various provinces and abolished Supreme Courts at Calcutta, Madras and Bombay and the Sadar Adalats in Presidency towns. The first high court in India, **'The High Court of Judicature at Fort William'**, now called the **'High Court of Calcutta'**, was brought into existence by the Letters Patent dated **14 May 1862**. The act was passed after the Indian Rebellion of 1857 to consolidate the parallel legal system of the crown and East Indian Company.

Statement 2 is correct. **Part VI** of the Constitution of India contains provisions regarding the organisation and functions of the High Court. By the provision of Article 214 which says, “there shall be a High Court for each state”, every state in India has a High Court and these courts have a constitutional status.

Statement 3 is correct. The Constitution of India provides for a high court for each state, but the **Seventh Amendment Act of 1956** authorised the Parliament to establish a common high court for two or more states or for two or more states and a union territory. The territorial jurisdiction of a high court is **co-terminus with the territory** of a state. Similarly, the territorial jurisdiction of a **common high court** is **co-terminus** with the territories of the concerned **states and union territory**.

Statement 4 is incorrect. The jurisdiction and powers of a high court in so far as they are specified in the Constitution cannot be curtailed both by the Parliament and the state legislature. But, in other respects, the jurisdiction and powers of a high court can be changed both by the parliament and the state legislature.

Source: <https://main.sci.gov.in/pdf/Museum/m2.pdf>

https://www.iilsindia.com/study-material/936904_1624173524.pdf

<https://egyankosh.ac.in/bitstream/123456789/21045/1/Unit-12.pdf>

Q.23) Which of the following statements is correct regarding the High Courts in India?

1. The Seventh Amendment Act of 1956 authorises the Parliament to establish a common high court for two or more states.
2. There are currently seven High Courts in India having jurisdiction over more than one State/Union Territory.

Select the correct answer using the code given below:

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) c

Exp) Option c is correct.

Though the constitution of India provides for single judicial system, yet provisions are made of separate courts for each state. Article 231 of Indian Constitution provides that parliament may by Law establish a common High Court for two or more states and a union territory.

Statement 1 is correct. The Constitution of India provides for a high court for each state, but the **Seventh Amendment Act of 1956** authorised the Parliament to establish a common high court for two or more states or for **two or more states** and a **union territory**. The territorial jurisdiction of a high court is co-terminus with the territory of a state. Similarly, the territorial jurisdiction of a common high court is co-terminus with the territories of the concerned states and union territory.

Statement 2 is correct. There are **25** High Courts in India (the newly added is the Andhra Pradesh HC), **seven** having control over more than one State/UT. The common High courts and their territorial jurisdiction includes-

- 1) **Bombay High Court** has jurisdiction over Maharashtra, Dadar and Nagar Haveli, Daman, Diu, and Goa.
- 2) **Kolkata High Court** has jurisdiction over West Bengal and Andaman & Nicobar Islands.
- 3) **Madras High Court** has jurisdiction over Tamil Nadu and Pondicherry.
- 4) **Guwahati High Court** has jurisdiction over Assam, Nagaland, Mizoram, and Arunachal Pradesh.
- 5) **Kerala High Court** has jurisdiction over Kerala and Lakshadweep Islands.
- 6) **Punjab & Haryana High Court** has jurisdiction over Punjab, Haryana, and Chandigarh.
- 7) **Jammu & Kashmir and Ladakh High Court** has jurisdiction over Jammu and Kashmir and Ladakh

Source: https://www.iilsindia.com/study-material/936904_1624173524.pdf

Laxmikant (CHAPTER-HIGH COURT(CHART))

Q.24) Consider the following statements:

1. According to the Constitution the number of judges in each High Court is determined only after consultation with the Governor of the concerned state.
2. It is binding for President to consult the Chief Justice of the Supreme Court for appointments of the judges of the High Court.

Which of the statements given above is/are **incorrect**?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) a

Exp) Option a is correct.

The High Courts are part of the Indian judiciary, and function under the supervision, guidance and control of the Supreme Court in which President of India plays a vital role.

Statement 1 is incorrect. The **Constitution doesn't specify** the strength of High Court. Every High Court has a Chief Justice and number of judges. The number of judges varies from State to State. There is **no mention** of consultation with Governor rather the number of judges of each High Court is determined by the **President** from time to time depending on workload.

Statement 2 is correct. The judges of the High Courts are appointed by the **President of India**. While appointing Chief Justice of a High Court, the President must consult the Chief Justice of the Supreme Court and the Governor of the State concerned. While appointing other judges, the President consults the Chief Justice of the Supreme Court, the Chief Justice of the High Court and Governor of the State concerned. The **consultation** with the **Chief Justice of the Supreme Court** in respect of appointments and transfers of the judges of the High Court is also **obligatory and binding** for the President.

Source: <https://www.nios.ac.in/media/documents/srsec317newE/317EL15.pdf>

Q.25) Recently in India, agricultural productivity is negatively impacted due to increasing insect attack. In this context, how 'whiteflies' are damaging crops in India?

1. They eat the seeds and thin stem of the crop plant.
2. They excrete sticky honeydew and cause the yellowing or death of leaves.
3. They inject saliva that may harm the plant with the growth of the fungi.

Select the correct answer using the codes given below:

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Ans) b

Exp) Option b is correct.

Statement 1 is incorrect.

An invasion by desert locusts has hit large swathes of India in the middle of the coronavirus pandemic in 2020.

Whiteflies do not eat the seeds and thin stem of the crop plant. They damage the crops by sucking sap from the plants. Whiteflies can seriously injure plants by sucking juices from them, causing leaves to yellow, shrivel, and drop prematurely.

Statement 2 is correct.

They secrete large amounts of honeydew. The honeydew is soon colonized by a fungus called "sooty mold," making leaves look black and dirty. The soot prevents light from reaching leaf surfaces, causing plants to become stressed.

Statement 3 is correct.

They inject saliva that may harm the plant more than either the mechanical damage of feeding or the growth of the fungi.

Source: How Whiteflies are Damaging Crops in India? - ForumIAS Blog

Controlling Whiteflies in Your Garden - Master Gardeners of Ventura County (ucanr.edu)

Q.26) With reference to the appointment of subordinate employees in High Courts, consider the following statements:

1. The Chief Justice of the High Court holds the power to appoint a person as an officer or servant in the High Court.
2. The conditions of service of officers and servants of a High Court are prescribed by rules made by the Chief Justice of the High Court.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) c

Exp) Option c is correct.

Article 229 of the Indian Constitution is associated with Officers and servants and the expenses of High Courts.

Statement 1 is correct. Article 229 (1) is associated with appointments of officers and servants of a High Court. According to it, the appointments of officers and servants of a High Court shall be made by the **Chief**

Justice of the High Court or such other **Judge or officer of the Court** as he may direct. But the **Governor** of the State may require that a **person not already attached to the Court** shall not be appointed to any office connected with the Court.

Statement 2 is correct. According to Article 229 (2), the conditions of service of officers and servants of a High Court are prescribed by rules made by the Chief Justice of the High Court. purpose. But the rules made related to salaries, allowances, leave or pensions, **require the approval of the Governor** of the State.

Source:

<https://indiankanoon.org/doc/72643601/#:~:text=%E2%80%9CThe%20unequivocal%20purpose%20and%20obvious,by%20the%20executive%20except%20to>

<https://indiankanoon.org/doc/875627/>

Q.27) Which of the following Acts & Procedures govern the present Jurisdiction and powers of High Court?

1. The Letters Patent
2. Rules of Procedure of Lok Sabha
3. Acts of Parliament
4. Indian Penal Code, 1860

Select the correct answer using the code given below

- a) 1, 2 and 3 only
- b) 4 only
- c) 1, 3 and 4 only
- d) 1, 2, 3 and 4

Ans) c

Exp) Option c is correct.

The Constitution of India does not contain detailed provisions regarding the jurisdiction and powers of a high court. It only lays down that the jurisdiction and powers of a high court are to be the same as immediately before the commencement of the Constitution. The present jurisdiction and powers of a high court are governed by (a) the constitutional provisions, (b) **the Letters Patent**, (c) **the Acts of Parliament**, (d) the Acts of State Legislature, (e) **Indian Penal Code, 1860**, (f) Criminal Procedure Code, 1973, and (g) Civil Procedure Code, 1908.

While **Rule of Procedure** is associated with the conduct of businesses in **Parliament in India**.

Source: https://www.iilsindia.com/study-material/936904_1624173524.pdf

Q.28) With reference to jurisdictions of Central Administrative Tribunals (CAT), Consider the following statements:

1. The CAT exercises original jurisdiction in relation to recruitment and service matters of public servants.
2. While it covers Central civil services and civilian employees of defence services, it excludes all-India services.
3. The CAT is guided by the principle of natural justice and not bound by procedures laid down in Civil Procedure Code of 1908.

Which of the above-mentioned statements is/are correct?

- a) 1 and 3 only
- b) 2 and 3 only
- c) 3 only
- d) 1, 2 and 3 only

Ans) a

Exp) Option a is correct.

The CAT is a specialist body consisting of Administrative Members and Judicial Members who by virtue of their specialized knowledge are better equipped to dispense speedy and effective justice. Features of CAT are as follows:

Statement 1 is correct - The CAT exercises original jurisdiction in relation to recruitment

and all service matters of public servants covered by it. Originally, appeals against the orders of the CAT could be made only in the Supreme Court and not in the high courts. However, in the *Chandra Kumar* case

(1997), the Supreme Court declared this restriction on the jurisdiction of the high courts as unconstitutional, holding that judicial review is a part of the basic structure of the Constitution.

Statement 2 is incorrect – Its **jurisdiction extends to the all-India services**, the Central civil services, civil posts under the Centre and civilian employees of defence services. However, the members of the defence forces, officers and servants of the Supreme Court and the secretarial staff of the Parliament are not covered by it. Hence even, All India services are covered by CAT only and not SAT.

Statement 3 is correct – The **CAT is not bound by the procedure laid down in the Civil Procedure Code** of 1908. It is guided by the principles of natural justice. These principles keep the CAT flexible in approach. Only a nominal fee of ₹50 is to be paid by the applicant. The applicant may appear either in person or through a lawyer.

Source: M Laxmikant – Chapter – Tribunals

Q.29) With reference to Supreme Court in India and United States, which of the following statements is/are correct?

1. While the SC judges retire at 65 years of age in India, they can hold their seat until they resign in USA.
2. The ambit of Judicial review in India is wider than that of federal court of USA.

Choose the correct answer using the options given below:

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) a

Exp) Option a is correct.

Statement 1 is correct – At present, the retirement age is 65 years for Supreme Court judges and 62 years for high court judges. **In USA, Judges hold their seats until they resign, die, or are removed from office.**

Statement 2 is incorrect – **The scope of judicial review in India is narrower than that of what exists in USA**, though the American Constitution does not explicitly mention the concept of judicial review in any of its provisions. In USA the judges exercise judicial review in a very aggressive manner. Due to exercise of wide power of judicial review by the American Supreme Court in the name of “due process of law” clause has made the critics to describe it as a third chamber of legislature, a super legislature.

Knowledge Base: <http://www.legalservicesindia.com/article/1734/Judicial-Review-in-India-And-USA.html#:~:text=The%20scope%20of%20judicial%20review%20in%20India%20is%20narrower%20than,in%20a%20very%20aggressive%20manner.>

Source: M Laxmikant – Chapter – Tribunals

Q.30) Consider the following statements regarding ‘Elephant Seals’:

1. They are found only in the Southern Hemisphere of the Earth specifically in Antarctica.
2. They feed on small fish instead of larger preys in a deep-sea region.
3. Female seals are relatively smaller than the male seals.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Ans) b

Exp) Option b is correct.

Statement 1 is incorrect.

Elephant seals are the largest seals on earth. There are two species of elephant seals:

- 1) **Northern Elephant Seals:** They are found across the Pacific coast of the United States, Canada and Mexico.
- 2) **Southern elephant Seals:** They live in sub-Antarctic and Antarctic waters that feature brutally cold conditions.

Statement 2 is correct.

Elephant Seals were found to spend more than 20 hours every day and sometimes a full 24 hours in continuous deep-diving to feeding. They feed on **multitudes of small fish instead of larger prey favoured by other deep-diving marine mammals**. This is being done to gain the body fat essential for successful reproduction and insulation in the frozen depths.

Statement 3 is correct.

Female elephant seals are only about one-third of the size compared to male elephant seals. So, they hunt smaller fish in a deep-sea region. On the other hand, male elephant seals feed only in coastal waters.

Source: Understanding the feeding behaviour of "Northern Elephant seals"-ForumIAS Blog

Q.31) With reference to tribunals, consider the following statements:

1. The original constitution did not provide for establishment of Tribunals.
2. Each High Court holds a separate bench of Central Administrative Tribunal.
3. The present sanctioned strength of CAT is 65 members and one Chairman.

Which of the above-mentioned statements is/are correct?

- a) 1 and 2 only
- b) 1 and 3 only
- c) 2 and 3 only
- d) None of the above

Ans) b

Exp) Option b is correct.

Due to complexity of cases and increased litigations, tribunals were thought of as a medium to ease the pressure on lower judiciary for specific matters. Hence amendments were made as follows:

Statement 1 is correct - The **original Constitution did not contain provisions with respect to tribunals**.

The 42nd Amendment Act of 1976 added a new Part XIV-A to the Constitution. This part is entitled as 'Tribunals' and consists of only two Articles-Article 323 A dealing with administrative tribunals and Article 323 B dealing with tribunals for other matters.

Statement 2 is incorrect - **There is no provision for benches of CAT to be in each High Court**. For ex Jabalpur High Court holds the bench for Chhattisgarh too etc. The Central Administrative Tribunal (CAT) was set up in 1985 with the principal bench at Delhi and additional benches in different states. At present, it has 17 regular benches, 15 of which operate at the principal seats of high courts and the remaining two at Jaipur and Lucknow. These benches also hold circuit sittings at other seats of high courts.

Statement 3 is correct - **At present (2021), the sanctioned strength of the Chairman is one and sanctioned strength of the Members is 65**. They are drawn from both judicial and administrative streams and are appointed by the president. They hold office for a term of five years or until they attain the age of 65 years in case of chairman and 62 years in case of members, whichever is earlier.

Source: M Laxmikant – Chapter – Tribunals

Q.32) With reference to Tribunals Reforms Act 2021, which of the following statements is /are correct?

1. It has created a separate tribunal for Goods and Service Tax called The Goods and Service Tax Appellate Tribunal.
2. The Act empowers the Supreme Court to provide for the qualifications, tenure and other service conditions of the members of tribunals.
3. The Act has merged several tribunals based on their domains.

Choose the correct answer using the options given below:

- a) 1 and 2 only
- b) 1 and 3 only
- c) 2 and 3 only
- d) None of the above

Ans) d

Exp) Option d is correct.

Statement 1 is incorrect - **CGST Act** (not Tribunals Reforms Act 2021) provides for the Appeal and Review Mechanism for dispute resolution under the GST Regime. The act empowers the Central Government to constitute, by notification, an Appellate Tribunal known as the Goods and Services Tax Appellate Tribunal

for hearing appeals against the orders passed by the Appellate Authority. Goods and Services Tax Appellate Tribunal is the form of the second appeal in GST laws and the first common forum of dispute resolution between Centre and States.

Statement 2 is incorrect – Judicial bodies like the **Supreme Court and High Court have no role and the rules are framed by the Centre**. The Central Government can make rules to provide for the qualifications, appointment, salaries and allowances, resignation, removal and other conditions of service of the Chairperson and Member of a Tribunal. This is done after taking into consideration the experience, specialisation in the relevant field and the provisions of this Act. There is a search and selection committee for deciding on the appointments to be made.

Statement 3 is incorrect – The **Finance Act of 2017 had merged tribunals based on domains**. It also gave powers to the central government to notify rules on the composition of search-cum-selection committees, tribunal members' qualifications, terms and conditions of service like salary, removal, etc. The new tribunal reforms act removes these provisions from the finance act.

Source: M Laxmikant – Chapter – Tribunals

Q.33) With reference to State Administrative Tribunals (SAT), consider the following statements:

1. The Central Government is empowered to establish the SAT on specific request of concerned state government.
2. All the states, except West Bengal and Kerala, have functioning State Administrative Tribunals.
3. The chairman and members of SAT are appointed by the Governor in consultation with respective Chief Justice of High Court.

Which of the above-mentioned statements is/are correct?

- a) 1 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Ans) a

Exp) Option a is correct.

Like the CAT, the SATs exercise original jurisdiction in relation to recruitment and all service matters of state government employees. Features of the SATs are as follows:

Statement 1 is correct – In pursuance of Article 323 A, the Parliament has passed the Administrative Tribunals Act in 1985. The Administrative Tribunals Act of 1985 **empowers the Central government to establish the State Administrative Tribunals (SATs) on specific request of the concerned state governments**. The act also makes a provision for setting up of joint administrative tribunal (JAT) for two or more states. A JAT exercises all the jurisdiction and powers exercisable by the administrative tribunals for such states

Statement 2 is incorrect – **So far (2019), the SATs have been set up in the nine states** of Andhra Pradesh, Himachal Pradesh, Odisha, Karnataka, Madhya Pradesh, Maharashtra, Tamil Nadu, West Bengal and Kerala. However, the Madhya Pradesh, Tamil Nadu and Himachal Pradesh Tribunals have since been abolished. But subsequently, the Himachal Pradesh re-established the SAT and the state of Tamil Nadu has also requested now to re-establish the same. Further, the state government of Haryana has requested to establish the SAT for their state. On the other hand, the state government of Odisha has submitted a proposal for abolition of Odisha Administrative Tribunal.

Statement 3 is incorrect – The **chairman and members of the SATs are appointed by the president after consultation with the governor of the state concerned**. The chairman and members of a JAT are appointed by the president after consultation with the governors of the concerned states.

Source: M Laxmikant – Chapter – Tribunals

Q.34) With reference to the difference between Article 323A and 323B, Consider the following statements:

1. Article 323A aims for the establishment of tribunals for public service matters only.
2. Tribunals under Article 323 B can be established only by Parliament.
3. Under Article 323 B, a hierarchy of tribunals can be created.

Which of the statements given above is/are correct?

- a) 3 only

- b) 1 and 3 only
- c) 2 only
- d) 1 and 2 only

Ans) b

Exp) Option b is correct.

Article 323 A empowers the Parliament to provide for the establishment of administrative tribunals for the adjudication of disputes and under Article 323 B, the Parliament and the state legislatures are authorized to provide for the establishment of tribunals for the adjudication of disputes.

Statement 1 is correct: In pursuance of Article 323 A, the Parliament has passed the Administrative Tribunals Act in 1985. The act authorises the Central government to establish one Central administrative tribunal and the state administrative tribunals. While **Article 323 A** contemplates establishment of **tribunals for public service matters only**, **Article 323 B** contemplates establishment of **tribunals for certain other matters**. Under Article 323 B, the Parliament and the state legislatures are authorised to provide for the establishment of tribunals for the adjudication of disputes relating to the following matters:

- 1) Taxation
- 2) Foreign exchange, import and export
- 3) Industrial and labour
- 4) Land reforms
- 5) Ceiling on urban property
- 6) Elections to Parliament and state legislatures
- 7) Food stuffs
- 8) Rent and tenancy rights

Statement 2 is incorrect: While tribunals under **Article 323 A** can be established **only by Parliament**, tribunals under **Article 323 B** can be established both **by Parliament and state legislatures** with respect to matters falling within their legislative competence.

Statement 3 is correct: Under **Article 323 A**, only one tribunal for the Centre and one for each state or two or more states may be established. **There is no question of hierarchy of tribunals**, whereas under **Article 323 B**, a **hierarchy of tribunals may be created**. In Chandra Kumar case⁴ (1997), the Supreme Court declared those provisions of these two articles which excluded the jurisdiction of the high courts and the Supreme Court as unconstitutional. Hence, the judicial remedies are now available against the orders of these tribunals.

Source: Indian polity by M laxmikanth. 6th edition pdf. Page no. 786.

Q.35) “This ecosystem was formed from the sediments that were deposited by the Indus and other rivers over thousands of years. The vegetation here is sparse and highly dependent on rainfall. It is dominated by low-growing forbs and graminoids, many of which are halophiles (salt-tolerant), as well as scattered tree cover and scrub. The tribal community of Maldhari resides in this ecosystem.”

Which of one of the following ecosystems in India is mentioned in the above paragraph?

- a) Sundarbans
- b) Banni Grassland
- c) Thar desert
- d) Lower slopes of Western Himalayas

Ans) b

Exp) Option b is correct.

Banni Grassland is situated near the Great Rann of Kutch in Gujarat. It is considered to be the largest Grassland in Asia. **The grassland** spreads over 2,618 kilometers and accounts for almost 45% of the pastures in Gujarat. The word ‘Banni’ comes from the Hindi word ‘banai’, meaning made. The land here was formed from the **sediments that were deposited by the Indus and other rivers over thousands of years**. Two ecosystems, wetlands and grasslands are juxtaposed in Banni.

The vegetation in Banni is sparse and highly dependent on rainfall. It is dominated by low-growing forbs and graminoids, many of which are **halophiles (salt-tolerant)**, as well as scattered tree cover and scrub. The grasslands were traditionally managed by a system of rotational grazing. The area is rich in flora and fauna with 192 species of plants, 262 species of birds, several species of mammals, reptiles, and amphibians.

Maldharis are a tribal herdsmen community in Gujarat, India. The literal meaning of Maldhari is a keeper (dhari) of the animal stock (mal). **The Maldharis** have lived in the Gir National Park, in the Banni Grasslands Reserve area, for the past thousand years.

Source: "Banni Grasslands" -NGT Upholds Rights of Maldharis-ForumIAS Blog

Q.36) Consider the following statements with reference to the Central Administrative Tribunals (CAT):

1. The Central Administrative Tribunal (CAT) was set up in 1975 with the principal bench at Mumbai.
2. No fees is required to be paid by the applicant in CAT.
3. The applicant may appear either in person or through a lawyer.

Which of the statements given above is/are correct?

- a) 1 only
- b) 1 and 3 only
- c) 3 only
- d) 1, 2 and 3

Ans) c

Exp) Option c is correct.

The Central Administrative Tribunal (CAT) was set up in 1985 with the principal bench at Delhi and additional benches in different states. At present, it has 17 regular benches, 15 of which operate at the principal seats of high courts and the remaining two at Jaipur and Lucknow.

Statement 1 is incorrect: The **Central Administrative Tribunal (CAT)** was set up in 1985 with the principal bench at **Delhi** and additional benches in different states. At present, it has 17 regular benches, 15 of which operate at the principal seats of high courts and the remaining two at Jaipur and Lucknow. These benches also hold circuit sittings at other seats of high courts.

Statement 2 is incorrect: **Only a nominal fee of ₹50 is to be paid by the applicant.** The CAT is a multi-member body consisting of a chairman and members. Originally, the CAT consisted of a Chairman, Vice-Chairman and members. Later, in 2006, the provision for the Vice-Chairman was removed by the Administrative Tribunals (Amendment) Act, 2006.

Statement 3 is correct: **The applicant may appear either in person or through a lawyer.** Originally, appeals against the orders of the CAT could be made only in the Supreme Court and not in the high courts. However, in the Chandra Kumar case² (1997), the Supreme Court declared this restriction on the jurisdiction of the high courts as unconstitutional, holding that judicial review is a part of the basic structure of the Constitution.

Source: Indian polity by M laxmikanth. 6th edition pdf. Page no.784 and 785.

Q.37) Consider the following statements with reference to the District Judge:

1. The appointment, posting and promotion of district judges in a state are made by the Chief justice of the concerned High Courts.
2. A person to be appointed as district judge should be recommended by the high court for appointment.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) b

Exp) Option b is correct.

Articles 233 to 237 in Part VI of the Constitution make the provisions to regulate the organization of subordinate courts.

Statement 1 is incorrect: The **appointment, posting and promotion of district judges** in a state are made by the **governor of the state** in consultation with **the high court**. Appointment of persons (other than district judges) to the judicial service of a state is made by the governor of the state after consultation with the State Public Service Commission and the high court.

Statement 2 is correct: A person to be appointed as **district judge** should have the following **qualifications**:

1) He should **not already** be in the service of the **Central or the state government**.

2) He should have been an advocate or a pleader for seven years.

3) He should be recommended by the high court for appointment

Source: Indian polity by M laxmikanth. 6th edition pdf. Page no. 790.

Q.38) Consider the following statements with reference to the permanent Lok Adalat:

1. A district judge can be appointed as the Chairman of the permanent Lok Adalat..

2. Every award made by the Permanent Lok Adalat shall be final and binding on all the parties.

3. Permanent Lok Adalat does not have jurisdiction in matters relating to an offence not compoundable under any law.

Which of the statements given above is/are correct?

a) 1 and 2 only

b) 2 and 3 only

c) 1 and 3 only

d) 1, 2 and 3

Ans) d

Exp) Option d is correct.

The Legal Services Authorities Act, 1987 was amended in 2002 to provide for the establishment of the Permanent Lok Adalats to deal with cases pertaining to the public utility services.

Statement 1 is correct: The **Permanent Lok Adalat** shall consist of a **Chairman** who is or has been a **district judge or additional district judge** or has held **judicial office higher in rank than that of the district judge** and two other persons having adequate experience in public utility services. The Permanent Lok Adalat shall exercise jurisdiction in respect of one or more public utility services such as transport services of passengers or goods by air, road and water; postal, telegraph or telephone services; supply of power, light or water to the public by any establishment; public conservancy or sanitation; services in hospitals or dispensaries; and insurance services.

Statement 2 is correct: Every award made by the Permanent Lok Adalat shall be **final and binding on all the parties** thereto and shall be by a majority of the persons constituting the Permanent Lok Adalat. Where it appears to the Permanent Lok Adalat that there exist elements of a settlement, which may be acceptable to the parties, it shall formulate the terms of a possible settlement and submit them to the parties for their observations and in case the parties reach an agreement, the Permanent Lok Adalat shall pass an award in terms thereof. In case parties to the dispute fail to reach an agreement, the Permanent Lok Adalat shall decide the dispute on merits.

Statement 3 is correct: The **Permanent Lok Adalat** shall **have no jurisdiction** in respect of any matter relating to an offence **not compoundable under any law**. Before the dispute is brought before any court, any party to the dispute may make an application to the Permanent Lok Adalat for settlement of the dispute. After an application is made to the Permanent Lok Adalat, no party to that application shall invoke jurisdiction of any court in the same dispute.

Source: Indian polity by M laxmikanth. 6th edition pdf. Page no. 802.

Q.39) Consider the following statements with reference to the Gram Nyayalays:

1. The Gram Nyayalaya shall be established for every Panchayat at intermediate level.

2. Nyayadhikaris who will preside over these Gram Nyayalayas are strictly judicial officers.

3. Gram Nyayalaya shall exercise the powers of Civil Courts only and not criminal courts.

4. The Gram Nyayalaya shall be bound by the rules of evidence provided in the Indian Evidence Act, 1872.

Which of the statements given above is/are correct?

a) 1 and 2 only

b) 1, 2 and 4 only

c) 2, 3 and 4 only

d) 1, 2, 3 and 4

Ans) a

Exp) Option a is correct.

Statement 1 is correct: The Gram Nyayalaya shall be established for every Panchayat at intermediate level or a group of contiguous Panchayats at intermediate level in a district or where there is no Panchayat at intermediate level in any State, for a group of contiguous Panchayats. The seat of the Gram Nyayalaya will be located at the headquarters of the intermediate Panchayat, they will go to villages, work there and dispose of the cases.

Statement 2 is correct: The Nyayadhikaris who will preside over these Gram Nyayalayas are strictly judicial officers and will be drawing the same salary, deriving the same powers as First Class Magistrates working under High Courts. The Gram Nyayalaya shall be court of Judicial Magistrate of the first class and its presiding officer (Nyayadhikari) shall be appointed by the State Government in consultation with the High Court.

Statement 3 is incorrect: The Gram Nyayalaya shall be a mobile court and shall exercise the powers of both Criminal and Civil Courts. The Gram Nyayalaya shall try criminal cases, civil suits, claims or disputes which are specified in the First Schedule and the Second Schedule to the Act. The Gram Nyayalaya shall follow summary procedure in criminal trial. The Gram Nyayalaya shall exercise the powers of a Civil Court with certain modifications and shall follow the special procedure as provided in the Act.

Statement 4 is incorrect: The Gram Nyayalaya shall not be bound by the rules of evidence provided in the Indian Evidence Act, 1872. But it shall be guided by the principles of natural justice and subject to any rule made by the High Court. Appeal in criminal cases shall lie to the Court of Session, which shall be heard and disposed of within a period of six months from the date of filing of such appeal.

Source: Indian polity by M laxmikanth. 6th edition pdf. Page no.806 and 807

Q.40) 'Section 79' of The Information Technology Act, 2000 is often seen in news. In this context, which one of the following is the correct content of this section?

- Exemption from liability of intermediary
- Punishment for offensive comments
- Power of central government to make rules
- Compensation for failure to protect data

Ans) a

Exp) Option a is correct.

Section 79 of The Information Technology Act, 2000 states that any intermediary shall not be held legally or otherwise liable for any third-party information, data, or communication link made available or hosted on its platform.

This means that as long as a platform acts just as the messenger carrying a message from point A to point B, without interfering in any manner, it will be safe from any legal prosecution brought upon due to the message being transmitted.

Social Media companies will lose their protection under Section 79 of the IT Act if they fail to comply with new IT Rules, 2021.

Source: 9-pm-compilation-for-the-Month-of-May-2021-Fourth-Week.pdf (forumias.com)

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Explained: Social media and safe harbour | Explained News, The Indian Express

Q.41) Consider the following statements with reference to the Family Courts:

- Matters related to the maintenance of children and parents falls within the jurisdiction of Family Courts.
- The act allows the State Governments to set up a Family Court only in cities having a population exceeding five million.
- The act provides for only one right of appeal which shall lie to the district Court.

Which of the statements given above is/are correct?

- 1 only
- 1 and 2 only
- 2 and 3 only
- 3 only

Ans) a

Exp) Option a is correct.

Family courts act provides for the establishment of Family Courts by the State Governments in consultation with the High Courts.

Statement 1 is correct: The Family Courts Act, 1984 was enacted to provide for the **establishment of Family Courts with a view to promote conciliation and secure speedy settlement of disputes** relating to marriage and family affairs.

It exclusively provides within the jurisdiction of the Family Courts the matters relating to:

- (1) matrimonial relief, including nullity of marriage, judicial separation, divorce, restitution of conjugal rights, or declaration as to the validity of marriage or as to the matrimonial status of any person
- (2) the property of the spouses or of either of them;
- (3) declaration as to the legitimacy of any person;
- (4) guardianship of a person or the custody of any minor; and
- (5) **maintenance of wife, children and parents.**

Statement 2 is incorrect: Family courts act makes it obligatory on the State Governments to set up a Family Court in every city or town with a **population exceeding one million**. It enables the State Governments to set up Family Courts in other areas also, if they deem it necessary. It provides for the establishment of Family Courts by the State Governments in consultation with the High Courts.

Statement 3 is incorrect: Family courts act 1984 provides that the parties to a dispute before a Family Court shall not be entitled, as of right, to be represented by legal practitioner. However, the Court may, in the interest of justice, seek assistance of a legal expert as amicus curiae. It simplifies the rules of evidence and procedure so as to enable a Family Court to deal effectively with a dispute. **It provides for only one right of appeal which shall lie to the High Court.**

Source: Indian polity by M Laxmikanth, 6th edition pdf. Page no. 803 and 804.

Q.42) With reference to the judicial review, consider the following statements:

1. It is the power of the Supreme Court to examine the constitutionality of legislative enactments and not executive orders of the governments.
 2. The imposition of President's Rule in a State is subject to judicial review.
- Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) b

Exp) Option b is correct.

Judicial review is a process under which executive and legislative actions are subject to review by the judiciary.

Statement 1 is incorrect: Judicial review is the power of the Supreme Court to **examine the constitutionality of both legislative enactments and executive orders** of both the Central and state governments. On examination, if they are found to be violative of the Constitution (ultra-vires), they can be declared as illegal, unconstitutional and invalid (null and void) by the Supreme Court. Consequently, they cannot be enforced by the Government.

Statement 2 is correct: In Bommai case (1994), the Supreme Court has ruled that the presidential proclamation imposing President's Rule is **subject to judicial review**. The satisfaction of the President must be based on relevant material. The action of the president can be struck down by the court if it is based on irrelevant or extraneous grounds or if it was found to be malafide or perverse.

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-27, Judicial Review

Q.43) Consider the following statements with reference to the e-Lok Adalats:

1. e-Lok Adalats can be organized at both national and State level.
2. In e-Lok Adalats, parties and lawyers are given the facility to present their case by making a WhatsApp video call.
3. Maharashtra was the first state to start e-Lok Adalats in India.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 and 3 only
- c) 1 and 2 only
- d) 1 and 3 only

Ans) c

Exp) Option c is correct.

The Lok Adalat is a forum where the cases (or disputes) which are pending in a court or which are at pre-litigation stage (not yet brought before a court) are compromised or settled in an amicable manner.

Statement 1 is correct: To overcome the challenges posed by the COVID-19 pandemic, **e-Lok Adalats were organised at both national and State level.** However, the first national e-Lok Adalat was conducted both physically and virtually using videoconferencing tools, and it disposed of 10,42,816 cases. But this was less than the average of settled cases in 2017, 2018, and 2019. This suggests that the performance of the National e-lok adalat (NeLA) was less efficient than physical National Lok Adalat's organised in 2017, 2018, and 2019.

- 1) In the e-Lok Adalat, an online link would be sent by SAMA (an Online Dispute Resolution platform recognized by Department of Justice for resolving disputes through video conferencing) to the concerned parties and a judge would preside over the mediation process. Following the settlement, an OTP would be sent to them and on confirmation, the dispute would be settled.

Statement 2 is correct: In e-Lok Adalat, the parties and lawyers will be able to sit in their respective homes and connect to the court by **video conferencing through the given link.** If the parties and lawyers have difficulty in connecting through video conferencing, then they have also been given the facility to present their case by **making a WhatsApp video call.**

Statement 3 is incorrect: Chhattisgarh became the first state to start e-Lok Adalat's. Chhattisgarh has set a new milestone at the time of ongoing Covid-19 pandemic with the state high court organizing nation's first state-level e-Lok Adalat and disposing nearly of 2270 cases by resolving cases through mutual agreement through video conferencing.

- 1) Chhattisgarh State Legal Services Authority (CGSLSA) confirmed that over 5,067 cases were heard in the e-Lok Adalat and a settlement amount of about Rs 43.72 crore was made.
- 2) As many as 195 benches, including two benches of the High Court, were set up in 23 districts to resolve matters in e-Lok Adalat.
- 3) In e-Lok Adalat, the parties and lawyers will be able to sit in their respective homes and connect to the court by video conferencing through the given link. If the parties and lawyers have difficulty in connecting through video conferencing, then they have also been given the facility to present their case by making a WhatsApp video call.

Source: Indian polity by M laxmikanth. 6th edition pdf. Page no.796 to 799

Q.44) Consider the following statements with reference to the Right to Shebaitship:

1. According to the Supreme Court, the Shebait is a custodian of idol and is entitled to manage the idol's property.
2. Death of a ruler completely nullifies the royal family's Shebaitship of a temple.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) a

Exp) Option a is correct.

The Supreme Court held that the erstwhile Travancore royal family is the "human ministrant" or the shebait (manager) of the properties belonging to Sri Padmanabha, chief deity of the famed and fabulously rich Sri Padmanabhaswamy temple in Kerala.

Statement 1 is correct: The court defined '**shebait**' as the "custodian of the idol, its earthly spokesman, **its authorized representative** entitled to deal **with all its temporal affairs** and to **manage its property**". The court traced how the shebaitship descended from King Marthanda Varma, who rebuilt the temple and

installed a new idol after a fire destroyed the temple in 1686. It referred to how the King surrendered his kingdom in January 1750 and assumed the role of 'Padmanabhadasa' after realizing "the futility of battles as a means to an end and the conscious feeling that the Travancore he created was built on a foundation of sacrifice of the liver and limbs of countless numbers who fell due to him and for him.

Statement 2 is incorrect: The judgment reads that the **death of a ruler does not affect the royal family's shebaitship of the temple**. Shebaitship was always in the royal family and the Ruler represented the unbroken line of shebait. Shebaitship does not lapse in favour of the State by principle of escheat (reversion of property to the State).

Source: <https://www.thehindu.com/news/national/sc-upholds-right-of-erstwhile-travancore-royal-family-in-administration-of-keralas-sree-padmanabhaswamy-temple/article32063310.ece>

Q.45) Which of the following will be the benefits of first Nano Urea Liquid launched by Indian Farmers Fertiliser Cooperative Limited (IFFCO) over conventional urea?

1. Reduced dependence on urea imports
2. Improved quality of underground water
3. Higher productivity of crops
4. Enhanced income of farmers

Select the correct answer using the codes given below:

- a) 1 and 3 only
- b) 2 and 4 only
- c) 1, 2 and 3 only
- d) 1, 2, 3 and 4 only

Ans) d

Exp) Option d is correct.

Nano Urea Liquid is a nutrient to provide nitrogen to plants as an alternative to conventional urea.

Benefits of Nano Urea Liquid over conventional urea:

- 1) Nano Liquid Urea can curtail the requirement of urea by at least 50%. This will in turn reduce India's dependence on urea imports.
- 2) Nano urea liquid is significant as its use by farmers will boost balanced nutrition programs by reducing the excess use of Urea application in the soil. This will help make the crops stronger, healthier and protect them from the lodging effect. Thus, **increasing its productivity**.
- 3) Nano Urea Liquid will have a positive impact on the **quality of underground water**, reduction in global warming with an impact on climate change and sustainable development.
- 4) Nano Urea Liquid will be cost-effective as it will be cheaper. This will help in increasing farmers' income.

Source: IFFCO launches world's first "Nano Liquid Urea" -ForumIAS Blog

Q.46) Consider the following statements with reference to the Quasi-Judicial bodies:

1. Decisions of Quasi-Judicial bodies always create a new law.
2. Their powers are limited to a very specific area of expertise and authority.
3. Article 280 of the Constitution of India provides for a Finance Commission as a quasi-judicial body.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Ans) b

Exp) Option b is correct.

Statement 1 is incorrect: Judicial decisions are bound by precedent in common law, whereas quasi-judicial decisions are generally not. **Judicial decisions may create new laws, but quasi-judicial decisions are based on existing law.** Quasi-judicial needn't adhere to strict judicial rules (of procedure and evidence). Quasi-judicial bodies can hold formal hearings only if they are mandated to do so as per their governing laws.

Statement 2 is correct: Quasi-judicial bodies' powers are **usually limited to a very specific area** of expertise and authority, such as land use and zoning, financial markets, public standards etc. National

Human Rights Commission, National Commission for Women, National Commission for Minorities, etc. are examples of quasi-judicial bodies.

Statement 3 is correct: Article 280 of the Constitution of India provides for a **Finance Commission as a quasi-judicial body**. It is constituted by the president of India every fifth year or at such earlier time as he considers necessary. The Finance Commission consists of a chairman and four other members to be appointed by the president. They hold office for such period as specified by the president in his order. They are eligible for reappointment.

Source: Indian polity by M laxmikanth. 6th edition pdf. Page no. 930

[https://blog.forumias.com/answered-what-is-a-quasi-judicial-body-explain-with-the-help-of-concrete-](https://blog.forumias.com/answered-what-is-a-quasi-judicial-body-explain-with-the-help-of-concrete-examples/#:~:text=A%20quasi%2Djudicial%20body%20is,basis%20of%20an%20official%20action.)

[examples/#:~:text=A%20quasi%2Djudicial%20body%20is,basis%20of%20an%20official%20action.](https://blog.forumias.com/answered-what-is-a-quasi-judicial-body-explain-with-the-help-of-concrete-examples/#:~:text=A%20quasi%2Djudicial%20body%20is,basis%20of%20an%20official%20action.)

Q.47) With reference to the Competition Commission of India (CCI), consider the following statements:

1. It is a non-statutory body established by the executive action.
2. It has the responsibility to impart training on competition issues.
3. It consists of maximum four members including chairperson.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 1, 2 and 3
- c) 2 only
- d) 1 only

Ans) c

Exp) Option c is correct.

Statement 1 is incorrect. Competition Commission of India (CCI) is a **statutory body established under the Competition Act, 2002**. It is tasked with ensuring a fair and healthy competition in economic activities of the country.

Statement 2 is correct. CCI Undertake competition advocacy, create public awareness and impart training on competition issues.

Statement 3 is incorrect. CCI is a quasi-judicial body which has one chairperson and six other members appointed by the Central Government.

Knowledge Base: **Additional Information**

Competition Commission of India

- 1) It is to act as an antitrust watchdog and ensure that there is no abuse of dominant position by a company in the market.

2) Functions of CCI

- a. Eliminate practices that have an adverse impact on competition.
- b. Secure the interest of consumers and ensure that their welfare is not compromised.
- c. Undertake competition advocacy, create public awareness and impart training on competition issues.
- d. Ensure smooth alignment of sectoral regulatory laws and competition laws.
- e. Ensures that foreign companies abide by the country's competition laws.
- f. It guarantees that no enterprise abuses their 'dominant position' through the control of supply, manipulating purchase prices, or adopting practices that deny market access to other competing firms.
- g. Please note: the appeals from CCI goes to National Company Law Appellate Tribunal (NCLAT) constituted under the Companies Act, 2013.

Source: <https://www.google.com/amp/s/cleartax.in/g/terms/cci-competition-commission-of-india/amp>

Q.48) Consider the following statements:

1. In criminal matters, appeals from the judgements of sessions court may lie to the high courts if the sentence is one of imprisonment for more than seven years.
2. A High court can withdraw a case pending in a subordinate court.

3. A high court has the power of superintendence over military courts functioning in its territorial jurisdiction.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 only
- c) 3 only
- d) 1 and 3 only

Ans) a

Exp) Option a is correct.

Statement 1 is correct. In criminal matters, appeals from the judgements of sessions court and additional sessions court lie to the high court if the sentence is one of imprisonment for more than seven years.

Statement 2 is correct. High Court can withdraw a case pending in a subordinate court if it involves a substantial question of law that require the interpretation of the Constitution. It can then either dispose of the case itself or determine the question of law and return the case to the subordinate court with its judgement.

Statement 3 is incorrect. A high court has the power of superintendence over all courts and tribunals functioning in its territorial jurisdiction (except military courts or tribunals).

Source: M Laxmikanth, chapter- High Court

Q.49) In which of the following cases, the Supreme Court allowed the appeals from the judgements of the tribunals to be made in the High Courts?

- a) Ujjam Bai vs State of Uttar Pradesh (1962)
- b) L. Chandra Kumar vs Union of India (1997)
- c) Minerva Mills Ltd. vs Union of India (1980)
- d) Indira Nehru Gandhi vs Raj Narnia (1975)

Ans) b

Exp) Option b is correct

In **L. Chandra Kumar case (1997)**, the Supreme Court declared those provisions of **articles 323 A and 323 B** which excluded the jurisdiction of the high courts and the Supreme Court as unconstitutional. Hence, the judicial remedies are now available against the orders of these tribunals.

The Supreme court held that tribunals constituted under articles 323A and 323 B have the power to test vires of subordinate legislation except vires of their parent statutes. All its decisions would be subject to scrutiny before Division Bench of their respective High Courts under articles 226/227.

Source: M Laxmikanth, chapter- chapter 35. Tribunals

Case study- Chandra Kumar v Union of India

Q.50) According to Indian Patent Act, 1970, under which of the following conditions can central government issue a compulsory license after the grant of the patent?

- 1. National emergency
- 2. Global Pandemic
- 3. Extreme Urgency
- 4. Case of public non-commercial use.

Select the correct answer using the code given above:

- a) 1, 2 and 3 only
- b) 1, 3 and 4 only
- c) 2, 3 and 4 only
- d) 1, 2, 3 and 4

Ans) b

Exp) Option b is correct.

Compulsory licensing (CL) is a process that allows governments to license third parties (that is, parties other than the patent holders) to produce, use and sell a patented product or process. By that, producers can manufacture patented drugs without the requirement of consent of patent owners.

In India, **Section 92 of the (Indian) Patent Act, 1970**: It authorizes the central government to issue a compulsory license at any time after the grant of the patent, in the case of:

- 1) National emergency; or
- 2) Extreme urgency; or
- 3) Case of public non-commercial use.

Source: What is Compulsory Licensing?–ForumIAS Blog

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